

**Phone Call: Caseworker David Milne &
Mother Ash Le' Penn
In The Matter of Al-mira Davis**

August 20, 2026

**Phone Call: Caseworker David Milne Mother
Ash Le' Penn**

1 00:00:00,740 -> 00:00:02,100

Recording Notification: This call is now being recorded

3 00:00:03,060 -> 00:00:04,120

Ash Le' Penn: Hello, Mr. Milne

4 00:00:06,000 -> 00:00:07,020

David Milne: Yeah, is this Ash Le'?

5 00:00:07,680 -> 00:00:08,360

Ash Le' Penn: This is Ash Le'.

6 00:00:09,640 -> 00:00:10,760

David Milne: Yeah, how can I help you?

7 00:00:11,860 -> 00:00:14,510

Ash Le' Penn: So, as I understood it, finding

8 00:00:14,510 -> 00:00:17,460

Ash Le' Penn: out not anyone from DHS, my

9 00:00:17,460 -> 00:00:20,320

Ash Le' Penn: daughter was missing.

10 00:00:23,680 -> 00:00:24,840

David Milne: Well, she was missing over the

11 00:00:24,840 -> 00:00:26,620

David Milne: weekend.

12 00:00:29,000 -> 00:00:30,060

David Milne: Nobody called to tell me? 13 00:00:30,120 -> 00:00:31,200

David Milne: She's back at the resource home.

14 00:00:32,940 -> 00:00:33,960

David Milne: So, we put a call out for the

15 00:00:33,960 -> 00:00:35,180

David Milne: hotline.

16 00:00:37,940 -> 00:00:38,260

David Milne: We called law enforcement at Tr
17 00:00:38,260 -> 00:00:41,160

David Milne: outdale, reported a missing
18 00:00:41,160 -> 00:00:43,630

David Milne: person, and we did the same
19 00:00:43,630 -> 00:00:44,160

David Milne: thing
20 00:00:44,160 -> 00:00:45,220

David Milne: in Beaverton Hillsborough.
21 00:00:47,280 -> 00:00:48,400

Ash Le' Penn: When did you do that?
22 00:00:49,080 -> 00:00:51,480

David Milne: I think Friday.
23 00:00:52,600 -> 00:00:53,540

Ash Le' Penn: She's missing this Friday.
24 00:00:53,540 -> 00:00:54,890

David Milne: I think law enforcement
25 00:00:54,890 -> 00:00:56,490

David Milne: actually came to your house
26 00:00:56,490 -> 00:00:58,200

David Milne: today, just checking to see if
27 00:00:58,200 -> 00:00:58,720

David Milne: she was
28 00:00:58,720 -> 00:00:59,240

David Milne: there or not.
29 00:00:59,500 -> 00:01:01,580

Ash Le' Penn: But you said that she's back at
30 00:01:01,580 -> 00:01:02,740

Ash Le' Penn: the resource home.
31 00:01:04,730 -> 00:01:05,160

David Milne: Resource parent called me
32 00:01:05,160 -> 00:01:08,120

David Milne: earlier this afternoon and said
33 00:01:08,120 -> 00:01:11,220

David Milne: that she's returned home, yeah.
34 00:01:12,400 -> 00:01:13,730

Ash Le' Penn: So, for two days, no one told
35 00:01:13,730 -> 00:01:15,020

Ash Le' Penn: me that she was missing though?
36 00:01:21,310 -> 00:01:21,310

Ash Le' Penn: I mean, if you start a missing
37 00:01:21,310 -> 00:01:22,920

Ash Le' Penn: person's report on someone's
38 00:01:22,920 -> 00:01:27,590

Ash Le' Penn: child, wouldn't that, I mean, I
39 00:01:27,590 -> 00:01:29,140

Ash Le' Penn: would think that you'd call me.
40 00:01:29,220 -> 00:01:30,130

Ash Le' Penn: I just don't, I'm not in the
41 00:01:30,130 -> 00:01:30,440

Ash Le' Penn: loop.
42 00:01:30,440 -> 00:01:31,060

Ash Le' Penn: I'm not in the loop.
43 00:01:31,060 -> 00:01:33,710

Ash Le' Penn: As a matter of fact, I have
44 00:01:33,710 -> 00:01:36,650

Ash Le' Penn: been informed that you,
45 00:01:36,650 -> 00:01:39,120

Ash Le' Penn: yourself, have confirmed that I'm
46 00:01:39,120 -> 00:01:41,560

Ash Le' Penn: not a party to the case.
47 00:01:41,720 -> 00:01:42,340

Ash Le' Penn: Is that correct?
48 00:01:43,680 -> 00:01:45,800

David Milne: No, I didn't establish that.
49 00:01:45,800 -> 00:01:47,890

David Milne: It's the fact that the judge
50 00:01:47,890 -> 00:01:49,880

David Milne: dismissed all your motions and
51 00:01:49,880 -> 00:01:51,980

David Milne: you haven't been to court.
52 00:01:52,400 -> 00:01:53,730

David Milne: You're not a legal party to the
53 00:01:53,730 -> 00:01:54,220

David Milne: case.
54 00:01:55,800 -> 00:01:56,950

Ash Le' Penn: So, if I'm not a legal party to
55 00:01:56,950 -> 00:01:58,350

Ash Le' Penn: the case, Mr. Milne, and you
56 00:01:58,350 -> 00:01:59,340

Ash Le' Penn: have to help me understand how
57 00:01:59,340 -> 00:02:00,560

Ash Le' Penn: you're taking actions against
58 00:02:00,560 -> 00:02:02,070

Ash Le' Penn: my parental rights, that can
59 00:02:02,070 -> 00:02:04,040

Ash Le' Penn: only be adjudicated by a court.
60 00:02:09,040 -> 00:02:10,630

David Milne: Do you want, I think you have got
61 00:02:10,630 -> 00:02:12,100

David Milne: just talked about AAG.

62 00:02:12,800 -> 00:02:13,320

David Milne: Do you want to talk to legal

63 00:02:13,320 -> 00:02:13,970

David Milne: monitors?

64 00:02:14,560 -> 00:02:16,020

Ash Le' Penn: I don't mind talking directly

65 00:02:16,020 -> 00:02:17,930

Ash Le' Penn: to the AAG at all, but it is an

66 00:02:17,930 -> 00:02:20,160

Ash Le' Penn: urgent matter because the piece

67 00:02:20,160 -> 00:02:21,940

Ash Le' Penn: of information that I just

68 00:02:21,940 -> 00:02:24,160

Ash Le' Penn: relayed, you're correct.

69 00:02:24,410 -> 00:02:25,190

Ash Le' Penn: I mean, at least as I

70 00:02:25,190 -> 00:02:27,070

Ash Le' Penn: understand it, I can't have the

71 00:02:27,070 -> 00:02:28,570

Ash Le' Penn: records that I've requested, so

72 00:02:28,570 -> 00:02:30,100

Ash Le' Penn: I don't know what the court has

73 00:02:30,100 -> 00:02:31,560

Ash Le' Penn: or has not said or done, and I

74 00:02:31,560 -> 00:02:33,000

Ash Le' Penn: have requested them.

75 00:02:33,340 -> 00:02:34,510

Ash Le' Penn: But I do know that they

76 00:02:34,510 -> 00:02:36,290

Ash Le' Penn: certainly, my motions haven't
77 00:02:36,290 -> 00:02:37,860

Ash Le' Penn: been granted, and they have
78 00:02:37,860 -> 00:02:40,180

Ash Le' Penn: been denied, not dismissed, but
79 00:02:40,180 -> 00:02:40,470

Ash Le' Penn: denied.
80 00:02:41,360 -> 00:02:41,810

Ash Le' Penn: And for all intents and
81 00:02:41,810 -> 00:02:43,470

Ash Le' Penn: purposes, that's what I'm
82 00:02:43,470 -> 00:02:45,390

Ash Le' Penn: considering them to be because,
83 00:02:45,390 -> 00:02:47,320

Ash Le' Penn: again, I don't, I can't, I've
84 00:02:47,320 -> 00:02:48,960

Ash Le' Penn: requested the records.
85 00:02:49,160 -> 00:02:50,780

Ash Le' Penn: I'm not being given to them,
86 00:02:50,780 -> 00:02:52,560

Ash Le' Penn: given them to me, even though
87 00:02:52,560 -> 00:02:54,900

Ash Le' Penn: statutorily I'm, whether or not
88 00:02:54,900 -> 00:02:56,820

Ash Le' Penn: I'm a party to the case, we all
89 00:02:56,820 -> 00:02:58,600

Ash Le' Penn: recognize that I'm Amira's
90 00:02:58,600 -> 00:03:00,420

Ash Le' Penn: biological mother.
91 00:03:02,960 -> 00:03:05,160

Ash Le' Penn: And therefore, that in itself
92 00:03:05,160 -> 00:03:06,420

Ash Le' Penn: would grant me the opportunity
93 00:03:06,420 -> 00:03:10,020

Ash Le' Penn: and ability and entitlement,
94 00:03:10,020 -> 00:03:11,900

Ash Le' Penn: actually, to those records.
95 00:03:12,140 -> 00:03:13,470

Ash Le' Penn: So I don't, you're right, I don't
96 00:03:13,470 -> 00:03:14,890

Ash Le' Penn: know what has happened in the
97 00:03:14,890 -> 00:03:15,460

Ash Le' Penn: court.
98 00:03:16,320 -> 00:03:18,410

Ash Le' Penn: However, knowing that you
99 00:03:18,410 -> 00:03:20,620

Ash Le' Penn: yourself are not considering me
100 00:03:20,620 -> 00:03:23,000

Ash Le' Penn: a party to the case, I'm asking
101 00:03:23,000 -> 00:03:24,910

Ash Le' Penn: how and under what authority
102 00:03:24,910 -> 00:03:26,770

Ash Le' Penn: then you would be taking my
103 00:03:26,770 -> 00:03:28,740

Ash Le' Penn: child from me, because if I'm
104 00:03:28,740 -> 00:03:30,160

Ash Le' Penn: not a party to the case, you
105 00:03:30,160 -> 00:03:31,550

Ash Le' Penn: would have to have a court
106 00:03:31,550 -> 00:03:33,340

Ash Le' Penn: order that is enforceable
107 00:03:33,340 -> 00:03:34,910

Ash Le' Penn: against me in order for you to
108 00:03:34,910 -> 00:03:36,560

Ash Le' Penn: remove my child from my care.
109 00:03:36,640 -> 00:03:37,500

Ash Le' Penn: Is that true or false?
110 00:03:39,160 -> 00:03:39,500

David Milne: I don't believe, I don't
111 00:03:39,500 -> 00:03:41,810

David Milne: believe Almira was removed
112 00:03:41,810 -> 00:03:43,300

David Milne: from your care.
113 00:03:43,380 -> 00:03:45,280

David Milne: I believe she was removed from
114 00:03:45,280 -> 00:03:46,280

David Milne: Alquan's care.
115 00:03:46,380 -> 00:03:47,480

David Milne: I believe you still have
116 00:03:47,480 -> 00:03:48,800

David Milne: children in your care.
117 00:03:49,460 -> 00:03:49,820

Ash Le' Penn: Absolutely.
118 00:03:50,600 -> 00:03:51,000

Ash Le' Penn: Absolutely.
119 00:03:52,000 -> 00:03:52,940

David Milne: Almira was not removed from
120 00:03:52,940 -> 00:03:53,900

David Milne: your care.
121 00:03:54,080 -> 00:03:54,920

Ash Le' Penn: I agree with that.
122 00:03:55,000 -> 00:03:55,620

Ash Le' Penn: I agree with that.
123 00:03:55,620 -> 00:03:57,140

Ash Le' Penn: So then, Mr. Milne, if you are
124 00:03:57,140 -> 00:03:58,400

Ash Le' Penn: saying that she was removed
125 00:03:58,400 -> 00:03:59,820

Ash Le' Penn: from Alquan's care and not from
126 00:03:59,820 -> 00:04:01,220

Ash Le' Penn: mine, how does DHS recognize
127 00:04:01,220 -> 00:04:02,700

Ash Le' Penn: noncustodial parents with
128 00:04:02,700 -> 00:04:04,040

Ash Le' Penn: respect to its own position?
129 00:04:04,160 -> 00:04:05,200

Ash Le' Penn: Do you come before a noncustodial
130 00:04:05,200 -> 00:04:05,840

Ash Le' Penn: parent?
131 00:04:08,120 -> 00:04:09,450

David Milne: I believe there was a
132 00:04:09,450 -> 00:04:11,470

David Milne: discussion about, and you're
133 00:04:11,470 -> 00:04:13,720

David Milne: fully aware of this because you've
134 00:04:13,720 -> 00:04:15,530

David Milne: quoted this to me many times
135 00:04:15,530 -> 00:04:17,700

David Milne: , and so we're just going around
136 00:04:17,700 -> 00:04:19,570

David Milne: in circles, but you were, it
137 00:04:19,570 -> 00:04:21,580

David Milne: was discussed at the hospital
138 00:04:21,580 -> 00:04:23,320

David Milne: about Almira going to your
139 00:04:23,320 -> 00:04:25,250

David Milne: care, and Almira said if she
140 00:04:25,250 -> 00:04:27,330

David Milne: went back to her mother's care,
141 00:04:27,330 -> 00:04:29,580

David Milne: she would kill herself.
142 00:04:30,270 -> 00:04:30,820

David Milne: So I believe that's what
143 00:04:30,820 -> 00:04:32,820

David Milne: happened, and I believe you're
144 00:04:32,820 -> 00:04:33,690 [Speaker 4] fully aware of
that because
145 00:04:33,690 -> 00:04:35,560

David Milne: that was one of the...
146 00:04:35,560 -> 00:04:36,300

David Milne: I don't understand.
147 00:04:37,140 -> 00:04:37,540

Ash Le' Penn: I agree.
148 00:04:37,640 -> 00:04:39,270

Ash Le' Penn: No, I'm not, I'm aware of time.
149 00:04:39,420 -> 00:04:40,740

Ash Le' Penn: We are on common ground here.
150 00:04:40,980 -> 00:04:41,820

Ash Le' Penn: I'm aware of that.
151 00:04:41,880 -> 00:04:43,240

Ash Le' Penn: Now, bringing us maybe to
152 00:04:43,240 -> 00:04:44,720

Ash Le' Penn: somewhere that we're not on
153 00:04:44,720 -> 00:04:46,450

Ash Le' Penn: common ground, I spoke with Sonia
154 00:04:46,450 -> 00:04:47,940

Ash Le' Penn: Faulkner well after that
155 00:04:47,940 -> 00:04:49,550

Ash Le' Penn: statement was made and either
156 00:04:49,550 -> 00:04:51,480

Ash Le' Penn: rescinded or retracted, but Ms.
157 00:04:51,480 -> 00:04:53,250

Ash Le' Penn: Faulkner confirms with me, and
158 00:04:53,250 -> 00:04:54,700

Ash Le' Penn: you know that I record all my
159 00:04:54,700 -> 00:04:56,200

Ash Le' Penn: calls and I keep a record of
160 00:04:56,200 -> 00:04:58,890

Ash Le' Penn: all these conversations, she
161 00:04:58,890 -> 00:05:00,470

Ash Le' Penn: confirmed with me that the
162 00:05:00,470 -> 00:05:02,790

Ash Le' Penn: agency recognizes that that
163 00:05:02,790 -> 00:05:05,200

Ash Le' Penn: that statement is being, is
164 00:05:05,200 -> 00:05:07,040

Ash Le' Penn: being contested.
165 00:05:07,140 -> 00:05:09,220

Ash Le' Penn: Amira either retracted or
166 00:05:09,220 -> 00:05:09,740

Ash Le' Penn: resinded.
167 00:05:09,740 -> 00:05:11,130

Ash Le' Penn: They have different legal
168 00:05:11,130 -> 00:05:12,580

Ash Le' Penn: meanings, but your agency
169 00:05:12,580 -> 00:05:13,830

Ash Le' Penn: through Sonia Faulkner
170 00:05:13,830 -> 00:05:15,330

Ash Le' Penn: confirmed to me that that
171 00:05:15,330 -> 00:05:16,830

Ash Le' Penn: statement was either rescinded
172 00:05:16,830 -> 00:05:18,520

Ash Le' Penn: or retracted, and so therefore
173 00:05:18,520 -> 00:05:20,240

Ash Le' Penn: it's not a consideration.
174 00:05:20,480 -> 00:05:22,560

Ash Le' Penn: Still, though, Mr. Milne, can
175 00:05:22,560 -> 00:05:23,830

Ash Le' Penn: you help me tie a few things
176 00:05:23,830 -> 00:05:24,660

Ash Le' Penn: together?
177 00:05:25,200 -> 00:05:26,520

Ash Le' Penn: I'm not a party to the case, as
178 00:05:26,520 -> 00:05:28,410

Ash Le' Penn: you recognize, either by way of
179 00:05:28,410 -> 00:05:30,160

Ash Le' Penn: whatever reason that you say
180 00:05:30,160 -> 00:05:32,260

Ash Le' Penn: there could be a couple I
181 00:05:32,260 -> 00:05:33,570

Ash Le' Penn: recognize coming from you, but
182 00:05:33,570 -> 00:05:35,480

Ash Le' Penn: I'm not a party to the case.
183 00:05:35,540 -> 00:05:37,630

Ash Le' Penn: Yet the court and DHS have
184 00:05:37,630 -> 00:05:40,190

Ash Le' Penn: together established an action,
185 00:05:40,190 -> 00:05:42,620

Ash Le' Penn: and although I'm a non-custodial
186 00:05:42,620 -> 00:05:45,010

Ash Le' Penn: parent, I think my question
187 00:05:45,010 -> 00:05:47,140

Ash Le' Penn: was, how does DHS consider
188 00:05:47,140 -> 00:05:49,380

Ash Le' Penn: themselves with respect to a
189 00:05:49,380 -> 00:05:51,780

Ash Le' Penn: non-custodial parent as far as
190 00:05:51,780 -> 00:05:53,650

Ash Le' Penn: order of preference for
191 00:05:53,650 -> 00:05:55,080

Ash Le' Penn: placement?
192 00:05:55,540 -> 00:05:57,620

Ash Le' Penn: And unless and until there are
193 00:05:57,620 -> 00:05:58,940

Ash Le' Penn: allegations which a statement
194 00:05:58,940 -> 00:06:01,140

Ash Le' Penn: of self-harm does not equate to
195 00:06:01,140 -> 00:06:02,620

Ash Le' Penn: one or both parents acting
196 00:06:02,620 -> 00:06:04,010

Ash Le' Penn: dangerously, one or both
197 00:06:04,010 -> 00:06:05,900

Ash Le' Penn: parents lacking the capacity to
198 00:06:05,900 -> 00:06:07,650

Ash Le' Penn: parent, as I understand what
199 00:06:07,650 -> 00:06:09,400

Ash Le' Penn: Sonia Faulkner quoted to me as
200 00:06:09,400 -> 00:06:10,720

Ash Le' Penn: the allegations.
201 00:06:11,220 -> 00:06:13,290

Ash Le' Penn: So that statement does not suit
202 00:06:13,290 -> 00:06:15,030

Ash Le' Penn: those two allegations in the
203 00:06:15,030 -> 00:06:15,940

Ash Le' Penn: petition.
204 00:06:16,180 -> 00:06:18,250

Ash Le' Penn: It really is not specific as to
205 00:06:18,250 -> 00:06:20,040

Ash Le' Penn: what behavior or conduct of
206 00:06:20,040 -> 00:06:22,410

Ash Le' Penn: mine, but ultimately, bottom
207 00:06:22,410 -> 00:06:24,290

Ash Le' Penn: line, what is it that DHS,
208 00:06:24,290 -> 00:06:26,300

Ash Le' Penn: under what authority, if I'm
209 00:06:26,300 -> 00:06:28,520

Ash Le' Penn: not a party to the case, is DHS
210 00:06:28,520 -> 00:06:30,750

Ash Le' Penn: exercising the power to remove
211 00:06:30,750 -> 00:06:32,860

Ash Le' Penn: her from me, even though I'm a
212 00:06:32,860 -> 00:06:35,020

Ash Le' Penn: non-custodial parent?
213 00:06:35,080 -> 00:06:35,860

Ash Le' Penn: Does that all make sense?
214 00:06:37,060 -> 00:06:38,650

David Milne: No, do you keep on saying Almira
215 00:06:38,650 -> 00:06:40,330

David Milne: was removed from you, and
216 00:06:40,330 -> 00:06:41,280

David Milne: she wasn't?
217 00:06:41,700 -> 00:06:43,980

Ash Le' Penn: No, she was, because I have, I
218 00:06:43,980 -> 00:06:46,280

Ash Le' Penn: as a parent, and Almira as a
219 00:06:46,280 -> 00:06:48,780

Ash Le' Penn: child, we have a mutually
220 00:06:48,780 -> 00:06:51,180

Ash Le' Penn: beneficial right to one another
221 00:06:51,180 -> 00:06:51,540

Ash Le' Penn: .
222 00:06:51,680 -> 00:06:53,010

Ash Le' Penn: I have the right to parent, she
223 00:06:53,010 -> 00:06:54,330

Ash Le' Penn: has the right to her natural
224 00:06:54,330 -> 00:06:54,780

Ash Le' Penn: family.
225 00:06:55,080 -> 00:06:56,570

Ash Le' Penn: In Oregon, fully recognized,
226 00:06:56,570 -> 00:06:57,960

Ash Le' Penn: actually in statute.
227 00:06:58,560 -> 00:06:59,890

Ash Le' Penn: So because we have the right to
228 00:06:59,890 -> 00:07:01,930

Ash Le' Penn: one another, whether or not I'm
229 00:07:01,930 -> 00:07:04,130

Ash Le' Penn: a non-custodial parent, I do
230 00:07:04,130 -> 00:07:05,220

Ash Le' Penn: have that right.
231 00:07:05,620 -> 00:07:07,690

Ash Le' Penn: And so because that right is
232 00:07:07,690 -> 00:07:09,580

Ash Le' Penn: not being observed by the
233 00:07:09,580 -> 00:07:11,950

Ash Le' Penn: agency, when I'm saying Almira
234 00:07:11,950 -> 00:07:14,190

Ash Le' Penn: should be with me, and Almira
235 00:07:14,190 -> 00:07:16,440

Ash Le' Penn: has expressed the desire to be
236 00:07:16,440 -> 00:07:19,090

Ash Le' Penn: with me, if not, of course, her
237 00:07:19,090 -> 00:07:21,440

Ash Le' Penn: dad being her first choice, but
238 00:07:21,440 -> 00:07:23,480

Ash Le' Penn: that's not on the table.
239 00:07:23,940 -> 00:07:26,590

Ash Le' Penn: But with that being said, the
240 00:07:26,590 -> 00:07:28,600

Ash Le' Penn: agency has taken the position
241 00:07:28,600 -> 00:07:31,000

Ash Le' Penn: that you're able to tell her
242 00:07:31,000 -> 00:07:31,680

Ash Le' Penn: and I no.
243 00:07:32,560 -> 00:07:33,280

Ash Le' Penn: And on what authority would you
244 00:07:33,280 -> 00:07:34,640

Ash Le' Penn: be doing that, since you
245 00:07:34,640 -> 00:07:36,100

Ash Le' Penn: recognize that I'm not a party
246 00:07:36,100 -> 00:07:37,210

Ash Le' Penn: to the case, that the
247 00:07:37,210 -> 00:07:38,790

Ash Le' Penn: allegations for removing her
248 00:07:38,790 -> 00:07:40,280

Ash Le' Penn: from me initially, the night
249 00:07:40,280 -> 00:07:42,140

Ash Le' Penn: that she was at the hospital,
250 00:07:42,140 -> 00:07:43,470

Ash Le' Penn: had to do with a statement of
251 00:07:43,470 -> 00:07:45,040

Ash Le' Penn: self-harm that was either rescinded
252 00:07:45,040 -> 00:07:46,240

Ash Le' Penn: or retracted,
253 00:07:46,300 -> 00:07:47,630

Ash Le' Penn: and Ms. Faulkner, as your
254 00:07:47,630 -> 00:07:49,200

Ash Le' Penn: higher up, recognizes, but then
255 00:07:49,200 -> 00:07:50,690

Ash Le' Penn: that statement doesn't suit the
256 00:07:50,690 -> 00:07:52,180

Ash Le' Penn: petition's allegations.
257 00:07:52,880 -> 00:07:53,980

Ash Le' Penn: None of this is making sense.
258 00:07:54,140 -> 00:07:55,660

Ash Le' Penn: There's such a far disconnect.
259 00:07:56,020 -> 00:07:56,770

Ash Le' Penn: And I think that you understand
260 00:07:56,770 -> 00:07:57,500

Ash Le' Penn: what I'm saying.
261 00:07:58,160 -> 00:07:58,830

Ash Le' Penn: There's a far disconnect
262 00:07:58,830 -> 00:08:00,780

Ash Le' Penn: between returning her to me the
263 00:08:00,780 -> 00:08:01,900

Ash Le' Penn: night of September 6th,
264 00:08:01,900 -> 00:08:03,670

Ash Le' Penn: changing that decision based on
265 00:08:03,670 -> 00:08:05,200

Ash Le' Penn: a statement of self-harm,
266 00:08:05,740 -> 00:08:07,150

Ash Le' Penn: alleging a parent is acting
267 00:08:07,150 -> 00:08:08,430

Ash Le' Penn: dangerously or lacks the
268 00:08:08,430 -> 00:08:09,950

Ash Le' Penn: capacity to parent, and then
269 00:08:09,950 -> 00:08:11,350

Ash Le' Penn: knowing that statement was
270 00:08:11,350 -> 00:08:12,880

Ash Le' Penn: retracted or rescinded.
271 00:08:13,540 -> 00:08:14,540

Ash Le' Penn: But that also I'm not a party
272 00:08:14,540 -> 00:08:15,460

Ash Le' Penn: to the case.
273 00:08:15,660 -> 00:08:17,200

Ash Le' Penn: So, Mr. Milne, can you help tie
274 00:08:17,200 -> 00:08:18,140

Ash Le' Penn: this in for me?
275 00:08:18,160 -> 00:08:20,240

Ash Le' Penn: Because when you put it in this
276 00:08:20,240 -> 00:08:21,540

Ash Le' Penn: light, it's very messy.
277 00:08:22,000 -> 00:08:23,560

Ash Le' Penn: The agency has to remove a
278 00:08:23,560 -> 00:08:25,410

Ash Le' Penn: child based on things that
279 00:08:25,410 -> 00:08:27,600

Ash Le' Penn: relate to or that are the
280 00:08:27,600 -> 00:08:30,200

Ash Le' Penn: allegations in the petition,
281 00:08:30,580 -> 00:08:31,620

Ash Le' Penn: which is not a statement of
282 00:08:31,620 -> 00:08:32,440

Ash Le' Penn: self-harm.
283 00:08:33,440 -> 00:08:34,640

Ash Le' Penn: Is that correct or not?
284 00:08:35,740 -> 00:08:37,800

Ash Le' Penn: Doesn't the removal reason,
285 00:08:37,800 -> 00:08:39,150

Ash Le' Penn: doesn't the basis for removal
286 00:08:39,150 -> 00:08:41,420

Ash Le' Penn: have to be necessarily tied to
287 00:08:41,420 -> 00:08:43,470

Ash Le' Penn: the allegations in the petition

288 00:08:43,470 -> 00:08:43,820

Ash Le' Penn: ?

289 00:08:47,460 -> 00:08:47,490 I believe that, I've never

290 00:08:47,490 -> 00:08:50,210

David Milne: worked in child protective

291 00:08:50,210 -> 00:08:51,790

David Milne: services.

292 00:08:51,790 -> 00:08:53,160

David Milne: I've never removed a child.

293 00:08:54,040 -> 00:08:56,690

David Milne: So, I believe that when child

294 00:08:56,690 -> 00:08:59,760

David Milne: protective services goes to

295 00:08:59,760 -> 00:09:03,860

David Milne: this court, they have to...

296 00:09:03,860 -> 00:09:04,280

Ash Le' Penn: When who?

297 00:09:04,960 -> 00:09:06,630

David Milne: Prove a reason why they're

298 00:09:06,630 -> 00:09:08,360

David Milne: asking the child to be removed

299 00:09:08,360 -> 00:09:10,720

David Milne: from the parents and...

300 00:09:10,720 -> 00:09:11,880

David Milne: Oh, you said child protective

301 00:09:11,880 -> 00:09:12,400

David Milne: services.

302 00:09:12,600 -> 00:09:13,170

Ash Le' Penn: I didn't hear you.

303 00:09:13,200 -> 00:09:13,580

Ash Le' Penn: You cut out.
304 00:09:13,660 -> 00:09:14,410

Ash Le' Penn: But you said when child
305 00:09:14,410 -> 00:09:15,740

Ash Le' Penn: protective services goes to the
306 00:09:15,740 -> 00:09:16,040

Ash Le' Penn: court.
307 00:09:16,240 -> 00:09:16,910

Ash Le' Penn: Now I have you back.
308 00:09:20,040 -> 00:09:20,340

Ash Le' Penn: Go ahead.
309 00:09:20,340 -> 00:09:22,410

David Milne: They have to give the judge a
310 00:09:22,410 -> 00:09:23,340

David Milne: reason...
311 00:09:23,340 -> 00:09:23,620

Ash Le' Penn: Yes.
312 00:09:23,720 -> 00:09:25,100

David Milne: ...why they're wanting to
313 00:09:25,100 -> 00:09:26,550

David Milne: remove the child from...
314 00:09:26,550 -> 00:09:26,790

Ash Le' Penn: Yes.
315 00:09:27,360 -> 00:09:28,980

David Milne: ...the custody of the parent
316 00:09:28,980 -> 00:09:30,750

David Milne: and the judge awards custody
317 00:09:30,750 -> 00:09:32,670

David Milne: and wardship to DHS.
318 00:09:32,670 -> 00:09:33,000

Ash Le' Penn: Yes.

319 00:09:33,400 -> 00:09:33,720

Ash Le' Penn: Yes.

320 00:09:34,120 -> 00:09:34,400

Ash Le' Penn: Yes.

321 00:09:34,480 -> 00:09:35,220

Ash Le' Penn: I agree with that.

322 00:09:35,860 -> 00:09:36,850

Ash Le' Penn: And so, when the agency did

323 00:09:36,850 -> 00:09:38,630

Ash Le' Penn: that on September 8th, the

324 00:09:38,630 -> 00:09:40,120

Ash Le' Penn: agency went...

325 00:09:40,120 -> 00:09:42,190

Ash Le' Penn: Now, keeping in mind that on

326 00:09:42,190 -> 00:09:43,580

Ash Le' Penn: September 6th, every intention

327 00:09:43,580 -> 00:09:45,890

Ash Le' Penn: of returning her to me was

328 00:09:45,890 -> 00:09:48,210

Ash Le' Penn: changed only by a statement of

329 00:09:48,210 -> 00:09:49,690

Ash Le' Penn: self-harm that your agency

330 00:09:49,690 -> 00:09:51,570

Ash Le' Penn: recognizes was rescinded or

331 00:09:51,570 -> 00:09:52,550

Ash Le' Penn: retracted.

332 00:09:52,640 -> 00:09:54,240

Ash Le' Penn: So, whether or not it's a valid

333 00:09:54,240 -> 00:09:55,910

Ash Le' Penn: statement or not, how does that
334 00:09:55,910 -> 00:09:57,540

Ash Le' Penn: tie to the allegations that one
335 00:09:57,540 -> 00:09:58,870

Ash Le' Penn: or both parents is acting
336 00:09:58,870 -> 00:10:00,230

Ash Le' Penn: dangerously or one or both
337 00:10:00,230 -> 00:10:01,840

Ash Le' Penn: parents lacks the capacity to
338 00:10:01,840 -> 00:10:03,410

Ash Le' Penn: parent because, in fact, you
339 00:10:03,410 -> 00:10:04,770

Ash Le' Penn: were returning her to me on
340 00:10:04,770 -> 00:10:06,080

Ash Le' Penn: September 6th.
341 00:10:06,080 -> 00:10:08,150

Ash Le' Penn: So, a statement of self-harm
342 00:10:08,150 -> 00:10:09,490

Ash Le' Penn: does not equate to the two
343 00:10:09,490 -> 00:10:11,910

Ash Le' Penn: allegations in the petition.
344 00:10:12,480 -> 00:10:13,440

Ash Le' Penn: And I only mention this
345 00:10:13,440 -> 00:10:15,520

Ash Le' Penn: granularly, and I lament that
346 00:10:15,520 -> 00:10:17,520

Ash Le' Penn: we are the first child removal
347 00:10:17,520 -> 00:10:19,500

Ash Le' Penn: that you've experienced.
348 00:10:19,660 -> 00:10:21,050

Ash Le' Penn: That's, you know, that's not
349 00:10:21,050 -> 00:10:22,500

Ash Le' Penn: what I want to hear, but it is
350 00:10:22,500 -> 00:10:23,240

Ash Le' Penn: what it is.
351 00:10:23,400 -> 00:10:25,620

Ash Le' Penn: And so, with that being said,
352 00:10:25,620 -> 00:10:27,870

Ash Le' Penn: the agency was returning her to
353 00:10:27,870 -> 00:10:30,440

Ash Le' Penn: me, and based on a statement of
354 00:10:30,440 -> 00:10:32,570

Ash Le' Penn: self-harm, they then develop
355 00:10:32,570 -> 00:10:34,700

Ash Le' Penn: the basis for the removal,
356 00:10:34,700 -> 00:10:35,540

Ash Le' Penn: which is that one or both
357 00:10:35,540 -> 00:10:37,080

Ash Le' Penn: parents is acting dangerously,
358 00:10:37,080 -> 00:10:38,390

Ash Le' Penn: and one or both parents lacks
359 00:10:38,390 -> 00:10:39,860

Ash Le' Penn: the capacity to parent, when,
360 00:10:39,860 -> 00:10:41,280

Ash Le' Penn: in fact, that has nothing to do
361 00:10:41,280 -> 00:10:42,940

Ash Le' Penn: with a statement of self-harm.
362 00:10:42,940 -> 00:10:44,540

Ash Le' Penn: Am I missing something?
363 00:10:47,040 -> 00:10:47,150

Ash Le' Penn: And then, at the same time, I'm
364 00:10:47,150 -> 00:10:49,320

Ash Le' Penn: not a party to the case.
365 00:10:49,760 -> 00:10:50,820

Ash Le' Penn: So, am I missing something?
366 00:10:53,100 -> 00:10:53,130

David Milne: No, it would be nice if you
367 00:10:53,130 -> 00:10:55,330

David Milne: went to court and you were able
368 00:10:55,330 -> 00:10:58,050

David Milne: , I was able, my job is to work,
369 00:10:58,050 -> 00:11:00,790

David Milne: to plan his reunification, that
370 00:11:00,790 -> 00:11:02,900

David Milne: 's the family state.
371 00:11:03,260 -> 00:11:03,400

David Milne: Yeah.
372 00:11:03,400 -> 00:11:05,510

David Milne: It would be great to have you
373 00:11:05,510 -> 00:11:07,810

David Milne: as a parent that was available
374 00:11:07,810 -> 00:11:09,720

David Milne: to be able to have Almiraa
375 00:11:09,720 -> 00:11:11,240

David Milne: place with you.
376 00:11:11,240 -> 00:11:14,040

Ash Le' Penn: So, that's not necessary.
377 00:11:14,600 -> 00:11:15,930

Ash Le' Penn: Mr. Milne, that's not necessary
378 00:11:15,930 -> 00:11:16,060

Ash Le' Penn: .
379 00:11:16,220 -> 00:11:17,550

Ash Le' Penn: And a few things are relevant
380 00:11:17,550 -> 00:11:19,230

Ash Le' Penn: here, related to that statement
381 00:11:19,230 -> 00:11:20,400

Ash Le' Penn: that you just made.
382 00:11:21,160 -> 00:11:22,500

Ash Le' Penn: Number one, the agency did not
383 00:11:22,500 -> 00:11:24,560

Ash Le' Penn: require my court appearance to
384 00:11:24,560 -> 00:11:26,760

Ash Le' Penn: release her to me for the night
385 00:11:26,760 -> 00:11:28,020

Ash Le' Penn: at the hospital.
386 00:11:28,640 -> 00:11:29,670

Ash Le' Penn: You didn't require my
387 00:11:29,670 -> 00:11:31,560

Ash Le' Penn: appearance in court.
388 00:11:31,760 -> 00:11:32,720

Ash Le' Penn: You were naturally going to
389 00:11:32,720 -> 00:11:33,920

Ash Le' Penn: release her to me because you
390 00:11:33,920 -> 00:11:35,290

Ash Le' Penn: recognized my position as a non
391 00:11:35,290 -> 00:11:36,280

Ash Le' Penn: -custodial parent.
392 00:11:36,720 -> 00:11:37,680

Ash Le' Penn: I think that that has to be
393 00:11:37,680 -> 00:11:38,200

Ash Le' Penn: said.
394 00:11:38,300 -> 00:11:39,840

Ash Le' Penn: You had to recognize it.
395 00:11:39,840 -> 00:11:41,390

Ash Le' Penn: You didn't just take her into
396 00:11:41,390 -> 00:11:43,070

Ash Le' Penn: custody immediately after her
397 00:11:43,070 -> 00:11:44,440

Ash Le' Penn: dad and her incident.
398 00:11:44,960 -> 00:11:45,740

Ash Le' Penn: And that means something.
399 00:11:46,300 -> 00:11:46,960

Ash Le' Penn: You called me.
400 00:11:47,460 -> 00:11:48,140

Ash Le' Penn: You wanted me to pick up my
401 00:11:48,140 -> 00:11:48,800

Ash Le' Penn: daughter.
402 00:11:49,360 -> 00:11:51,440

Ash Le' Penn: I sent my family to retrieve
403 00:11:51,440 -> 00:11:52,340

Ash Le' Penn: her for me.
404 00:11:52,880 -> 00:11:55,490

Ash Le' Penn: Now, not even considering the
405 00:11:55,490 -> 00:11:57,230

Ash Le' Penn: fact that your agency did not
406 00:11:57,230 -> 00:11:59,140

Ash Le' Penn: consider that I provided a
407 00:11:59,140 -> 00:12:00,610

Ash Le' Penn: familial resource that
408 00:12:00,610 -> 00:12:03,220

Ash Le' Penn: necessarily mitigated any harm
409 00:12:03,220 -> 00:12:05,480

Ash Le' Penn: that you could possibly allege
410 00:12:05,480 -> 00:12:06,640

Ash Le' Penn: against me.
411 00:12:07,040 -> 00:12:09,640

Ash Le' Penn: So, I sent my family, whom you
412 00:12:09,640 -> 00:12:11,730

Ash Le' Penn: then would, that same night, do
413 00:12:11,730 -> 00:12:14,090

Ash Le' Penn: the background check and vet
414 00:12:14,090 -> 00:12:16,230

Ash Le' Penn: for her to be in a substitute
415 00:12:16,230 -> 00:12:17,060

Ash Le' Penn: placement.
416 00:12:17,060 -> 00:12:18,970

Ash Le' Penn: But what that meant was your
417 00:12:18,970 -> 00:12:20,500

Ash Le' Penn: agency took custody of a child
418 00:12:20,500 -> 00:12:22,740

Ash Le' Penn: whom you didn't need to take
419 00:12:22,740 -> 00:12:24,580

Ash Le' Penn: custody of because not only
420 00:12:24,580 -> 00:12:26,270

Ash Le' Penn: does the allegation of a
421 00:12:26,270 -> 00:12:28,380

Ash Le' Penn: statement of self-harm not suit
422 00:12:28,380 -> 00:12:30,530

Ash Le' Penn: the two bases, but then there's
423 00:12:30,530 -> 00:12:33,020

Ash Le' Penn: a family member who's present.
424 00:12:33,020 -> 00:12:35,830

Ash Le' Penn: At the same time, there's not
425 00:12:35,830 -> 00:12:38,620

Ash Le' Penn: been any conduct that you
426 00:12:38,620 -> 00:12:40,350

Ash Le' Penn: pointed to - from me that
427 00:12:40,350 -> 00:12:43,050

Ash Le' Penn: requires DHS to go to the court
428 00:12:43,050 -> 00:12:45,520

Ash Le' Penn: to get that custody.
429 00:12:45,520 -> 00:12:48,030

Ash Le' Penn: So, yes, I agree with you that
430 00:12:48,030 -> 00:12:49,510

Ash Le' Penn: you went to court and you
431 00:12:49,510 -> 00:12:51,250

Ash Le' Penn: requested custody of my
432 00:12:51,250 -> 00:12:52,990

Ash Le' Penn: daughter, but you also
433 00:12:52,990 -> 00:12:55,000

Ash Le' Penn: recognize that you haven't
434 00:12:55,000 -> 00:12:57,260

Ash Le' Penn: dealt - you haven't upheld your
435 00:12:57,260 -> 00:12:59,090

Ash Le' Penn: obligation to involve me
436 00:12:59,090 -> 00:13:01,440

Ash Le' Penn: because that statement of self-
437 00:13:01,440 -> 00:13:03,600

Ash Le' Penn: harm does not equate to the two
438 00:13:03,600 -> 00:13:06,300

Ash Le' Penn: allegations in the petition.
439 00:13:07,760 -> 00:13:09,430

Ash Le' Penn: So, I'm still very lost and you're
440 00:13:09,430 -> 00:13:11,030

Ash Le' Penn: kind of hedging and you're
441 00:13:11,030 -> 00:13:12,450

Ash Le' Penn: kind of walking around the
442 00:13:12,450 -> 00:13:14,320

Ash Le' Penn: perimeter here without getting
443 00:13:14,320 -> 00:13:15,480

Ash Le' Penn: to the middle of what I'm
444 00:13:15,480 -> 00:13:17,350

Ash Le' Penn: saying, which is that, Mr. Milne
445 00:13:17,350 -> 00:13:19,080

Ash Le' Penn: you recognize that I'm not a
446 00:13:19,080 -> 00:13:20,340

Ash Le' Penn: party to the case.
447 00:13:20,340 -> 00:13:24,150

Ash Le' Penn: Now, ORS 419B, that's where we
448 00:13:24,150 -> 00:13:28,880

Ash Le' Penn: all live, right? 419B 918, 918
449 00:13:28,880 -> 00:13:31,720

Ash Le' Penn: is important because – hold on,
450 00:13:31,720 -> 00:13:34,040

Ash Le' Penn: hold on, Mr. Milne.
451 00:13:34,120 -> 00:13:35,150

Ash Le' Penn: We've had a very respectful
452 00:13:35,150 -> 00:13:36,290

Ash Le' Penn: conversation up to this point
453 00:13:36,290 -> 00:13:37,090

Ash Le' Penn: and what I'm saying is
454 00:13:37,090 -> 00:13:38,300

Ash Le' Penn: important to you because you're
455 00:13:38,300 -> 00:13:39,720

Ash Le' Penn: the point of contact and so I'd
456 00:13:39,720 -> 00:13:40,420

Ash Le' Penn: appreciate it if you would
457 00:13:40,420 -> 00:13:41,600

Ash Le' Penn: maintain this conversation as
458 00:13:41,600 -> 00:13:42,840

Ash Le' Penn: respectful as it's been.
459 00:13:42,840 -> 00:13:44,290

Ash Le' Penn: I appreciate how respectful you've
460 00:13:44,290 -> 00:13:44,860

Ash Le' Penn: been.
461 00:13:45,460 -> 00:13:46,540

Ash Le' Penn: So, what I'm saying to you is
462 00:13:46,540 -> 00:13:47,820

Ash Le' Penn: that - no, no, no.
463 00:13:47,920 -> 00:13:49,490

Ash Le' Penn: What I'm saying to you is that
464 00:13:49,490 -> 00:13:50,820

Ash Le' Penn: the court may have done
465 00:13:50,820 -> 00:13:52,830

Ash Le' Penn: whatever the court did, Mr. Milne
466 00:13:52,830 -> 00:13:54,600

Ash Le' Penn: but what I'm asking you as
467 00:13:54,600 -> 00:13:56,210

Ash Le' Penn: the caseworker, you are the
468 00:13:56,210 -> 00:13:57,500

Ash Le' Penn: point of contact.
469 00:13:58,040 -> 00:14:00,660

Ash Le' Penn: You are the one who deals with
470 00:14:00,660 -> 00:14:02,700

Ash Le' Penn: the family most often and I'm
471 00:14:02,700 -> 00:14:04,350

Ash Le' Penn: asking you to help me
472 00:14:04,350 -> 00:14:07,230

Ash Le' Penn: understand on what position DHS
473 00:14:07,230 -> 00:14:09,340

Ash Le' Penn: went to the court to get
474 00:14:09,340 -> 00:14:11,420

Ash Le' Penn: custody of my daughter based on
475 00:14:11,420 -> 00:14:13,860

Ash Le' Penn: a statement of self-harm is
476 00:14:13,860 -> 00:14:16,070

Ash Le' Penn: what you alleged for temporary
477 00:14:16,070 -> 00:14:18,220

Ash Le' Penn: emergency custody.
478 00:14:18,700 -> 00:14:20,570

Ash Le' Penn: Statement of self-harm, nothing
479 00:14:20,570 -> 00:14:22,100

Ash Le' Penn: to do with parental conduct.
480 00:14:22,440 -> 00:14:23,860

Ash Le' Penn: Yet, you went to the court and
481 00:14:23,860 -> 00:14:25,550

Ash Le' Penn: you told the court that one or
482 00:14:25,550 -> 00:14:27,330

Ash Le' Penn: both parents is acting dangerously
483 00:14:27,330 -> 00:14:29,120

Ash Le' Penn: and one or both parents
484 00:14:29,120 -> 00:14:31,160

Ash Le' Penn: lacks the capacity to parent.
485 00:14:31,620 -> 00:14:32,680

Ash Le' Penn: How does that have to do
486 00:14:32,680 -> 00:14:34,600

Ash Le' Penn: anything with a statement of
487 00:14:34,600 -> 00:14:35,600

Ash Le' Penn: self-harm?
488 00:14:36,220 -> 00:14:36,880

Ash Le' Penn: That's first.
489 00:14:36,980 -> 00:14:38,040

Ash Le' Penn: But secondly, you also
490 00:14:38,040 -> 00:14:39,200

Ash Le' Penn: recognize that I'm not a party
491 00:14:39,200 -> 00:14:40,080

Ash Le' Penn: to the case.
492 00:14:40,420 -> 00:14:42,040

Ash Le' Penn: Therefore, your acknowledgement
493 00:14:42,040 -> 00:14:43,650

Ash Le' Penn: , the night you were going to
494 00:14:43,650 -> 00:14:45,220

Ash Le' Penn: release her to me as the non-
495 00:14:45,220 -> 00:14:47,500

Ash Le' Penn: custodial parent, that natural
496 00:14:47,500 -> 00:14:48,790

Ash Le' Penn: acknowledgement, still has to
497 00:14:48,790 -> 00:14:50,040

Ash Le' Penn: be acknowledged.
498 00:14:50,780 -> 00:14:52,080

Ash Le' Penn: What conduct of mine suits the
499 00:14:52,080 -> 00:14:53,980

Ash Le' Penn: allegations in the petition
500 00:14:53,980 -> 00:14:56,370

Ash Le' Penn: when you recognize that you
501 00:14:56,370 -> 00:14:57,860

Ash Le' Penn: removed her for a statement of
502 00:14:57,860 -> 00:14:58,920

Ash Le' Penn: self-harm?
503 00:14:59,460 -> 00:15:00,840

Ash Le' Penn: And that I'm not a party to the
504 00:15:00,840 -> 00:15:01,460

Ash Le' Penn: case.
505 00:15:01,780 -> 00:15:02,600

Ash Le' Penn: My question has been the same
506 00:15:02,600 -> 00:15:03,900

Ash Le' Penn: and you're not answering it.
507 00:15:06,280 -> 00:15:07,610

Ash Le' Penn: You can't tell me what the
508 00:15:07,610 -> 00:15:08,980

Ash Le' Penn: court said because I'm not
509 00:15:08,980 -> 00:15:10,630

Ash Le' Penn: concerned about what the court
510 00:15:10,630 -> 00:15:12,080

Ash Le' Penn: said necessarily yet.
511 00:15:12,420 -> 00:15:13,910

Ash Le' Penn: First, I'm trying to establish
512 00:15:13,910 -> 00:15:15,260

Ash Le' Penn: your agency's basis for
513 00:15:15,260 -> 00:15:16,980

Ash Le' Penn: temporary emergency custody
514 00:15:16,980 -> 00:15:18,660

Ash Le' Penn: based on a statement of self-
515 00:15:18,660 -> 00:15:19,260

Ash Le' Penn: harm.
516 00:15:19,820 -> 00:15:20,880

Ash Le' Penn: But yet, that statement of self
517 00:15:20,880 -> 00:15:22,500

Ash Le' Penn: -harm is nowhere in the petition
518 00:15:22,500 -> 00:15:23,520

Ash Le' Penn: or allegations.
519 00:15:23,660 -> 00:15:24,660

Ash Le' Penn: It's not even before the court.
520 00:15:25,420 -> 00:15:26,270

Ash Le' Penn: You didn't tell the court we
521 00:15:26,270 -> 00:15:28,070

Ash Le' Penn: took her for mom as a non-cust
522 00:15:28,070 -> 00:15:29,780

Ash Le' Penn: odial parent because she made a
523 00:15:29,780 -> 00:15:31,540

Ash Le' Penn: statement of self-harm.
524 00:15:31,600 -> 00:15:32,830

Ash Le' Penn: That's not what you said
525 00:15:32,830 -> 00:15:34,260

Ash Le' Penn: because the statement was
526 00:15:34,260 -> 00:15:35,780

Ash Le' Penn: retracted or rescinded.
527 00:15:35,780 -> 00:15:37,110

Ash Le' Penn: You said one or both parents is
528 00:15:37,110 -> 00:15:38,200

Ash Le' Penn: acting dangerously.
529 00:15:38,800 -> 00:15:39,510

Ash Le' Penn: One or both parents lacks the
530 00:15:39,510 -> 00:15:40,600

Ash Le' Penn: capacity to parent.
531 00:15:41,080 -> 00:15:41,860

Ash Le' Penn: So how are these things
532 00:15:41,860 -> 00:15:42,700

Ash Le' Penn: connected?
533 00:15:42,920 -> 00:15:44,460

Ash Le' Penn: And why do you believe that you
534 00:15:44,460 -> 00:15:46,080

Ash Le' Penn: can remove my child based on
535 00:15:46,080 -> 00:15:47,970

Ash Le' Penn: one thing, keep that thing from
536 00:15:47,970 -> 00:15:50,000

Ash Le' Penn: the court, that basis, from the
537 00:15:50,000 -> 00:15:51,830

Ash Le' Penn: court, use a completely new set
538 00:15:51,830 -> 00:15:53,750

Ash Le' Penn: of factual allegations that are
539 00:15:53,750 -> 00:15:55,360

Ash Le' Penn: not substantiated?
540 00:15:55,580 -> 00:15:58,380

Ash Le' Penn: You all have no, none, no indication that
541 00:15:58,380 -> 00:16:01,180

Ash Le' Penn: Amira in my care has been
542 00:16:01,180 -> 00:16:02,800

Ash Le' Penn: neglected or abused.
543 00:16:03,300 -> 00:16:04,620

Ash Le' Penn: So one or both parents acting
544 00:16:04,620 -> 00:16:05,950

Ash Le' Penn: dangerously and one or both
545 00:16:05,950 -> 00:16:07,330

Ash Le' Penn: parents lacking the capacity to
546 00:16:07,330 -> 00:16:07,900

Ash Le' Penn: parent.
547 00:16:08,120 -> 00:16:10,200

Ash Le' Penn: I am asking, and I've asked you
548 00:16:10,200 -> 00:16:11,850

Ash Le' Penn: for this several times, the
549 00:16:11,850 -> 00:16:13,740

Ash Le' Penn: records that shows my founded
550 00:16:13,740 -> 00:16:15,840

Ash Le' Penn: allegation, that shows even the
551 00:16:15,840 -> 00:16:17,810

Ash Le' Penn: suspicion of an allegation you
552 00:16:17,810 -> 00:16:18,860

Ash Le' Penn: don't have.
553 00:16:19,980 -> 00:16:21,310

Ash Le' Penn: And so I'm wondering how you
554 00:16:21,310 -> 00:16:22,630

Ash Le' Penn: all are saying the court said
555 00:16:22,630 -> 00:16:24,020

Ash Le' Penn: this, the court said this.
556 00:16:24,060 -> 00:16:25,120

Ash Le' Penn: Well, I bet the court said
557 00:16:25,120 -> 00:16:26,270

Ash Le' Penn: because you went to them and
558 00:16:26,270 -> 00:16:27,080

Ash Le' Penn: told them that.
559 00:16:27,240 -> 00:16:28,910

Ash Le' Penn: But can you help me understand
560 00:16:28,910 -> 00:16:30,540

Ash Le' Penn: that the reason that you took
561 00:16:30,540 -> 00:16:32,150

Ash Le' Penn: her from and then hid her from
562 00:16:32,150 -> 00:16:33,880

Ash Le' Penn: me based on a statement of self
563 00:16:33,880 -> 00:16:35,410

Ash Le' Penn: -harm, how that fits the two
564 00:16:35,410 -> 00:16:37,290

Ash Le' Penn: allegations, especially when I'm
565 00:16:37,290 -> 00:16:38,960

Ash Le' Penn: not a party to the case, and
566 00:16:38,960 -> 00:16:40,640

Ash Le' Penn: you have no evidence.
567 00:16:41,340 -> 00:16:41,660

Ash Le' Penn: None.
568 00:16:41,940 -> 00:16:42,840

Ash Le' Penn: And I know this for a fact
569 00:16:42,840 -> 00:16:44,030

Ash Le' Penn: because I pride myself on being
570 00:16:44,030 -> 00:16:44,760

Ash Le' Penn: a good mother.
571 00:16:45,400 -> 00:16:46,730

Ash Le' Penn: You have no evidence to support
572 00:16:46,730 -> 00:16:48,410

Ash Le' Penn: the allegations that you are
573 00:16:48,410 -> 00:16:50,230

Ash Le' Penn: saying against me because you
574 00:16:50,230 -> 00:16:52,080

Ash Le' Penn: removed her for a statement of
575 00:16:52,080 -> 00:16:53,040

Ash Le' Penn: self-harm.
576 00:16:53,680 -> 00:16:54,510

Ash Le' Penn: How are those things related,
577 00:16:54,510 -> 00:16:55,300

Ash Le' Penn: Mr. Milne?
578 00:16:56,120 -> 00:16:56,660

Ash Le' Penn: And even though you have never
579 00:16:56,660 -> 00:16:57,750

Ash Le' Penn: removed a child, this is
580 00:16:57,750 -> 00:16:59,130

Ash Le' Penn: something that you should be
581 00:16:59,130 -> 00:17:00,060

Ash Le' Penn: able to answer.
582 00:17:00,960 -> 00:17:02,320

David Milne: But, well, no, you're talking
583 00:17:02,320 -> 00:17:03,940

David Milne: about a legal issue.
584 00:17:04,180 -> 00:17:05,040

Ash Le' Penn: It's not legal.
585 00:17:05,330 -> 00:17:06,560

Ash Le' Penn: It's not legal because, no,
586 00:17:06,560 -> 00:17:07,350

Ash Le' Penn: it's not legal.
587 00:17:07,350 -> 00:17:08,900

Ash Le' Penn: Because when DHS removes a
588 00:17:08,900 -> 00:17:10,720

Ash Le' Penn: child for temporary emergency
589 00:17:10,720 -> 00:17:12,890

Ash Le' Penn: custody, they could place them
590 00:17:12,890 -> 00:17:14,420

Ash Le' Penn: back with parent and never go
591 00:17:14,420 -> 00:17:15,080

Ash Le' Penn: to court.
592 00:17:16,110 -> 00:17:16,470

Ash Le' Penn: And so this has nothing to do
593 00:17:16,470 -> 00:17:18,180

Ash Le' Penn: with the court, Mr. Milne.
594 00:17:18,500 -> 00:17:19,030

Ash Le' Penn: This is not a legal
595 00:17:19,030 -> 00:17:19,960

Ash Le' Penn: conversation.
596 00:17:20,440 -> 00:17:22,060

Ash Le' Penn: This has to do with your agency's
597 00:17:22,060 -> 00:17:24,400

Ash Le' Penn: actions and observance of its
598 00:17:24,400 -> 00:17:25,420

Ash Le' Penn: own rules.
599 00:17:26,040 -> 00:17:26,740

Ash Le' Penn: When you take temporary
600 00:17:26,740 -> 00:17:28,690

Ash Le' Penn: emergency custody of a child,
601 00:17:28,690 -> 00:17:29,640

Ash Le' Penn: that is not legal.
602 00:17:29,940 -> 00:17:31,160

Ash Le' Penn: That is an agency action
603 00:17:31,160 -> 00:17:32,760

Ash Le' Penn: outside of the court.
604 00:17:32,760 -> 00:17:34,080

Ash Le' Penn: And I'm asking how then you can
605 00:17:34,080 -> 00:17:35,410

Ash Le' Penn: do that based on a statement of
606 00:17:35,410 -> 00:17:36,760

Ash Le' Penn: self-harm but then allege what
607 00:17:36,760 -> 00:17:37,760

Ash Le' Penn: you've alleged.
608 00:17:38,520 -> 00:17:39,840

David Milne: So, if you let me finish, what
609 00:17:39,840 -> 00:17:41,680

David Milne: you need to do then is we need
610 00:17:41,680 -> 00:17:43,440

David Milne: to get you in touch with the
611 00:17:43,440 -> 00:17:45,590

David Milne: child protective services
612 00:17:45,590 -> 00:17:47,690

David Milne: supervisor on that day who made
613 00:17:47,690 -> 00:17:48,780

David Milne: that decision.
614 00:17:49,280 -> 00:17:49,980

Ash Le' Penn: Oh, Ms. Kitto.
615 00:17:50,090 -> 00:17:50,800

Ash Le' Penn: I've spoken with her.
616 00:17:51,000 -> 00:17:52,220

Ash Le' Penn: I have her text messages.
617 00:17:52,760 -> 00:17:53,940

David Milne: That's who you need to talk to.
618 00:17:54,440 -> 00:17:55,410

Ash Le' Penn: Oh, yeah, no, I've spoken with
619 00:17:55,410 -> 00:17:55,660

Ash Le' Penn: her.
620 00:17:55,700 -> 00:17:57,020

Ash Le' Penn: And I don't understand how
621 00:17:57,020 -> 00:17:58,480

Ash Le' Penn: speaking with Ms. Kiddo is
622 00:17:58,480 -> 00:18:00,080

Ash Le' Penn: going to help me understand how
623 00:18:00,080 -> 00:18:01,500

Ash Le' Penn: a statement of self-harm - I
624 00:18:01,500 -> 00:18:03,270

Ash Le' Penn: mean, you're the caseworker, Mr
625 00:18:03,270 -> 00:18:04,180

Ash Le' Penn: . Milne.
626 00:18:04,200 -> 00:18:05,340

Ash Le' Penn: If you don't have knowledge of
627 00:18:05,340 -> 00:18:06,840

Ash Le' Penn: this, we have another set of
628 00:18:06,840 -> 00:18:07,090

Ash Le' Penn: problems.
629 00:18:07,680 -> 00:18:09,330

Ash Le' Penn: But if a statement of self-harm
630 00:18:09,330 -> 00:18:10,750

Ash Le' Penn: is the basis for temporary
631 00:18:10,750 -> 00:18:12,560

Ash Le' Penn: emergency protective custody,
632 00:18:12,560 -> 00:18:13,970

Ash Le' Penn: how that equates to the two
633 00:18:13,970 -> 00:18:15,410

Ash Le' Penn: allegations that are currently
634 00:18:15,410 -> 00:18:17,180

Ash Le' Penn: alive in the court and then a
635 00:18:17,180 -> 00:18:18,910

Ash Le' Penn: recognition that I'm not a
636 00:18:18,910 -> 00:18:20,190

Ash Le' Penn: party to the case, but I am her
637 00:18:20,190 -> 00:18:22,000

Ash Le' Penn: non-custodial parent, which
638 00:18:22,000 -> 00:18:23,500

Ash Le' Penn: puts me in a position ahead of
639 00:18:23,500 -> 00:18:25,560

Ash Le' Penn: yours for her care and custody.
640 00:18:26,560 -> 00:18:27,050

Ash Le' Penn: And this is something that you
641 00:18:27,050 -> 00:18:28,440

Ash Le' Penn: should be able to answer.
642 00:18:28,540 -> 00:18:29,390

Ash Le' Penn: It's not something that happens
643 00:18:29,390 -> 00:18:30,020

Ash Le' Penn: within the court.
644 00:18:30,320 -> 00:18:31,040

Ash Le' Penn: It's something that happens
645 00:18:31,040 -> 00:18:31,980

Ash Le' Penn: before you go to court.
646 00:18:32,700 -> 00:18:34,320

Ash Le' Penn: And I've spoken with Ms. Kiddo.
647 00:18:34,820 -> 00:18:36,450

David Milne: Okay, instead of trying to make
648 00:18:36,450 -> 00:18:37,800

David Milne: a legal argument with me –
649 00:18:37,800 -> 00:18:39,130

Ash Le' Penn: This is not a legal argument,
650 00:18:39,130 -> 00:18:39,760

Ash Le' Penn: Mr. Milne.
651 00:18:40,460 -> 00:18:41,560

Ash Le' Penn: This is not a legal argument.
652 00:18:41,740 -> 00:18:43,150

Ash Le' Penn: This exists in your rules, Mr.
653 00:18:43,150 -> 00:18:43,660

Ash Le' Penn: Milne.
654 00:18:43,720 -> 00:18:45,140

Ash Le' Penn: This is not a legal argument.
655 00:18:45,280 -> 00:18:45,990

Ash Le' Penn: Stop trying to make it
656 00:18:45,990 -> 00:18:47,340

Ash Le' Penn: something that it's not so that
657 00:18:47,340 -> 00:18:48,480

Ash Le' Penn: you don't have to answer me.
658 00:18:48,720 -> 00:18:50,300

Ash Le' Penn: This is something that exists
659 00:18:50,300 -> 00:18:51,830

Ash Le' Penn: within your policies and
660 00:18:51,830 -> 00:18:52,820

Ash Le' Penn: procedures.
661 00:18:53,040 -> 00:18:54,100

Ash Le' Penn: This is not to do with the
662 00:18:54,100 -> 00:18:54,660

Ash Le' Penn: court.
663 00:18:55,400 -> 00:18:57,560

David Milne: I can't overturn the judge.
664 00:18:57,560 -> 00:18:58,990

David Milne: I'm not asking you to overturn
665 00:18:58,990 -> 00:18:59,330

Ash Le' Penn: it.
666 00:18:59,420 -> 00:19:00,550

Ash Le' Penn: I'm asking you to help me
667 00:19:00,550 -> 00:19:01,400

Ash Le' Penn: understand.
668 00:19:01,540 -> 00:19:02,340

Ash Le' Penn: You see, you're not answering
669 00:19:02,340 -> 00:19:02,560

Ash Le' Penn: me.
670 00:19:02,980 -> 00:19:04,160

Ash Le' Penn: I'm asking you a very specific
671 00:19:04,160 -> 00:19:05,350

Ash Le' Penn: question, Mr. Milne.
672 00:19:05,440 -> 00:19:06,350

Ash Le' Penn: Please answer me.
673 00:19:06,980 -> 00:19:08,400

Ash Le' Penn: How does a statement of self-
674 00:19:08,400 -> 00:19:10,380

Ash Le' Penn: harm end up resulting in the two
675 00:19:10,380 -> 00:19:12,610

Ash Le' Penn: allegations that are before the
676 00:19:12,610 -> 00:19:13,380

Ash Le' Penn: court?
677 00:19:13,520 -> 00:19:14,460

Ash Le' Penn: That is something DHS
678 00:19:14,460 -> 00:19:15,350

Ash Le' Penn: established.
679 00:19:16,140 -> 00:19:17,140

Ash Le' Penn: You established the allegations
680 00:19:17,140 -> 00:19:17,330

Ash Le' Penn: .
681 00:19:18,240 -> 00:19:19,740

Ash Le' Penn: So how – I'm listening to you,
682 00:19:19,740 -> 00:19:20,330

Ash Le' Penn: Mr. Milne.
683 00:19:20,330 -> 00:19:20,830

David Milne: I don't know.
684 00:19:20,940 -> 00:19:21,960

David Milne: But listen to me.
685 00:19:22,400 -> 00:19:22,850

Ash Le' Penn: I'm listening.
686 00:19:23,000 -> 00:19:23,280

David Milne: I don't know.
687 00:19:23,820 -> 00:19:24,080

David Milne: Okay?
688 00:19:24,180 -> 00:19:24,960

David Milne: I don't know.
689 00:19:25,440 -> 00:19:26,900

David Milne: That's why I'm asking you to
690 00:19:26,900 -> 00:19:28,640

David Milne: put the CPS supervisor –
691 00:19:28,640 -> 00:19:29,830

Ash Le' Penn: But, Mr. Milne, do you see –
692 00:19:29,830 -> 00:19:30,850

Ash Le' Penn: like, human to human, do you
693 00:19:30,850 -> 00:19:32,280

Ash Le' Penn: not see a problem with that?
694 00:19:32,740 -> 00:19:33,800

Ash Le' Penn: I'm happy to go talk to whoever
695 00:19:33,800 -> 00:19:35,080

Ash Le' Penn: else I need to talk to.
696 00:19:35,350 -> 00:19:36,400

Ash Le' Penn: Yes, and of course I will.
697 00:19:36,780 -> 00:19:38,260

Ash Le' Penn: But, Mr. Milne, honestly, I am
698 00:19:38,260 -> 00:19:39,530

Ash Le' Penn: a mom who cares about her
699 00:19:39,530 -> 00:19:40,330

Ash Le' Penn: children.
700 00:19:40,440 -> 00:19:41,770

Ash Le' Penn: Do you not see a problem with
701 00:19:41,770 -> 00:19:43,250

Ash Le' Penn: that disconnect that you can't
702 00:19:43,250 -> 00:19:44,940

Ash Le' Penn: answer, but that you have to be
703 00:19:44,940 -> 00:19:46,190

Ash Le' Penn: able to in order for the
704 00:19:46,190 -> 00:19:47,500

Ash Le' Penn: removal to be valid?
705 00:19:47,960 -> 00:19:48,670

Ash Le' Penn: Do you understand what I'm
706 00:19:48,670 -> 00:19:49,200

Ash Le' Penn: saying?
707 00:19:49,960 -> 00:19:51,480

David Milne: I wasn't any part of the
708 00:19:51,480 -> 00:19:52,320

David Milne: removal.

709 00:19:52,720 -> 00:19:53,060

Ash Le' Penn: I know.

710 00:19:53,160 -> 00:19:53,920

Ash Le' Penn: And I'm not saying that you

711 00:19:53,920 -> 00:19:54,700

Ash Le' Penn: were, Mr. Milne.

712 00:19:54,800 -> 00:19:56,110

Ash Le' Penn: I'm not blaming you for what

713 00:19:56,110 -> 00:19:57,520

Ash Le' Penn: someone else said or did.

714 00:19:57,590 -> 00:19:58,930

Ash Le' Penn: You were at the hearing, but I

715 00:19:58,930 -> 00:20:00,520

Ash Le' Penn: 'm not saying that you did this.

716 00:20:01,000 -> 00:20:02,430

Ash Le' Penn: But I think that you understand

717 00:20:02,430 -> 00:20:03,900

Ash Le' Penn: where the disconnect is

718 00:20:03,900 -> 00:20:05,650

Ash Le' Penn: happening and how it doesn't

719 00:20:05,650 -> 00:20:07,680

Ash Le' Penn: make sense to me because with

720 00:20:07,680 -> 00:20:09,460

Ash Le' Penn: this disconnect, reunification

721 00:20:09,460 -> 00:20:10,960

Ash Le' Penn: is almost impossible if I were

722 00:20:10,960 -> 00:20:12,000

Ash Le' Penn: before the court.

723 00:20:12,000 -> 00:20:14,070

Ash Le' Penn: It's almost impossible because
724 00:20:14,070 -> 00:20:15,710

Ash Le' Penn: what conduct would I be amelior
725 00:20:15,710 -> 00:20:17,640

Ash Le' Penn: ating in order to get her back?
726 00:20:18,040 -> 00:20:19,530

Ash Le' Penn: There's not any pointing of any
727 00:20:19,530 -> 00:20:20,180

Ash Le' Penn: conduct.
728 00:20:20,440 -> 00:20:21,800

Ash Le' Penn: It was a statement of self-harm
729 00:20:21,800 -> 00:20:23,390

Ash Le' Penn: because there aren't any true
730 00:20:23,390 -> 00:20:24,830

Ash Le' Penn: allegations of lacking the
731 00:20:24,830 -> 00:20:26,400

Ash Le' Penn: capacity to parent or acting
732 00:20:26,400 -> 00:20:27,980

Ash Le' Penn: dangerously against me.
733 00:20:28,040 -> 00:20:29,350

Ash Le' Penn: So that would make reun
734 00:20:29,350 -> 00:20:31,400

Ash Le' Penn: ification almost impossible if I
735 00:20:31,400 -> 00:20:32,940

Ash Le' Penn: was before the court.
736 00:20:33,420 -> 00:20:34,190

Ash Le' Penn: And so I'm asking for my
737 00:20:34,190 -> 00:20:35,240

Ash Le' Penn: daughter back.
738 00:20:35,820 -> 00:20:37,280

Ash Le' Penn: I shouldn't have lost her.
739 00:20:37,780 -> 00:20:39,350

Ash Le' Penn: I didn't do anything to lose
740 00:20:39,350 -> 00:20:39,960

Ash Le' Penn: her.
741 00:20:40,330 -> 00:20:41,720

Ash Le' Penn: And I care about her, and I
742 00:20:41,720 -> 00:20:42,580

Ash Le' Penn: want her.
743 00:20:42,830 -> 00:20:44,910

Ash Le' Penn: And I've talked to your agency
744 00:20:44,910 -> 00:20:47,100

Ash Le' Penn: about this with Sonia Faulkner,
745 00:20:47,100 -> 00:20:48,440

Ash Le' Penn: with yourself.
746 00:20:48,740 -> 00:20:50,340

Ash Le' Penn: You're not able to provide me
747 00:20:50,340 -> 00:20:52,150

Ash Le' Penn: any substantial or any substant
748 00:20:52,150 -> 00:20:54,330

Ash Le' Penn: iation for the disconnect
749 00:20:54,330 -> 00:20:56,440

Ash Le' Penn: between that emergency removal
750 00:20:56,440 -> 00:20:57,220

Ash Le' Penn: from me.
751 00:20:57,380 -> 00:20:58,730

Ash Le' Penn: Even though you have a family
752 00:20:58,730 -> 00:21:00,350

Ash Le' Penn: member, even though there are
753 00:21:00,350 -> 00:21:01,790

Ash Le' Penn: no allegations of parental
754 00:21:01,790 -> 00:21:03,030

Ash Le' Penn: conduct, I'm trying to
755 00:21:03,030 -> 00:21:04,480

Ash Le' Penn: understand the disconnect
756 00:21:04,480 -> 00:21:06,050

Ash Le' Penn: between you taking her from me
757 00:21:06,050 -> 00:21:07,420

Ash Le' Penn: to give her to the family that
758 00:21:07,420 -> 00:21:08,910

Ash Le' Penn: I gave to you to bring her to
759 00:21:08,910 -> 00:21:09,400

Ash Le' Penn: me.
760 00:21:09,960 -> 00:21:11,630

Ash Le' Penn: And then at the same time, you
761 00:21:11,630 -> 00:21:13,390

Ash Le' Penn: 're alleging things against me
762 00:21:13,390 -> 00:21:15,330

Ash Le' Penn: in the court that are not true.
763 00:21:15,850 -> 00:21:17,110

Ash Le' Penn: I'm a good parent.
764 00:21:17,480 -> 00:21:19,310

Ash Le' Penn: I don't act dangerously around
765 00:21:19,310 -> 00:21:21,510

Ash Le' Penn: my children, or period, and I
766 00:21:21,510 -> 00:21:23,360

Ash Le' Penn: don't lack the capacity to
767 00:21:23,360 -> 00:21:24,260

Ash Le' Penn: parent.
768 00:21:24,350 -> 00:21:25,820

Ash Le' Penn: And I am asking you for either
769 00:21:25,820 -> 00:21:27,360

Ash Le' Penn: the records that demonstrate
770 00:21:27,360 -> 00:21:28,790

Ash Le' Penn: what behavior it is that you
771 00:21:28,790 -> 00:21:30,070

Ash Le' Penn: all are alleging so that I
772 00:21:30,070 -> 00:21:31,440

Ash Le' Penn: understand where I can get
773 00:21:31,440 -> 00:21:32,160

Ash Le' Penn: better.
774 00:21:32,660 -> 00:21:33,560

Ash Le' Penn: But you guys won't do that
775 00:21:33,560 -> 00:21:35,310

Ash Le' Penn: because you're claiming that I
776 00:21:35,310 -> 00:21:37,030

Ash Le' Penn: 'm failing to appear before the
777 00:21:37,030 -> 00:21:37,640

Ash Le' Penn: court.
778 00:21:37,820 -> 00:21:38,920

Ash Le' Penn: But here's the thing, Mr. Milne
779 00:21:38,920 -> 00:21:39,090

Ash Le' Penn: .
780 00:21:40,260 -> 00:21:42,910

Ash Le' Penn: 419B, 918, it specifically
781 00:21:42,910 -> 00:21:45,030

Ash Le' Penn: addresses a parent's appearance
782 00:21:45,030 -> 00:21:47,760

Ash Le' Penn: through their written filings.
783 00:21:47,880 -> 00:21:49,160

Ash Le' Penn: And that is 419B.
784 00:21:50,140 -> 00:21:50,930

Ash Le' Penn: It specifically addresses a
785 00:21:50,930 -> 00:21:53,040

Ash Le' Penn: parent being before the court.
786 00:21:53,720 -> 00:21:54,580

Ash Le' Penn: Now, that is legal.
787 00:21:54,820 -> 00:21:55,460

Ash Le' Penn: But that is legal.
788 00:21:55,840 -> 00:21:56,600

Ash Le' Penn: Now, this part is legal.
789 00:21:57,180 -> 00:21:58,860

Ash Le' Penn: No, Mr. Milne, I'm almost done.
790 00:21:59,060 -> 00:21:59,700

Ash Le' Penn: I'm almost done.
791 00:22:00,240 -> 00:22:02,080

Ash Le' Penn: 419B, 918, it literally
792 00:22:02,080 -> 00:22:03,640

Ash Le' Penn: addresses a parent appearing
793 00:22:03,640 -> 00:22:05,840

Ash Le' Penn: before the court through their
794 00:22:05,840 -> 00:22:07,000

Ash Le' Penn: written filings.
795 00:22:07,000 -> 00:22:08,600

Ash Le' Penn: I have followed the rules
796 00:22:08,600 -> 00:22:10,410

Ash Le' Penn: throughout this process to the
797 00:22:10,410 -> 00:22:10,960

Ash Le' Penn: T.
798 00:22:12,140 -> 00:22:12,660

Ash Le' Penn: To the T.

799 00:22:12,760 -> 00:22:15,410 [Speaker 4] Okay, so I said,
what Judge R

800 00:22:15,410 -> 00:22:18,270 [Speaker 4] ini said was
that that OAR is

801 00:22:18,270 -> 00:22:18,680 [Speaker 4] relevant.

802 00:22:18,680 -> 00:22:19,680

Ash Le' Penn: It's not an OAR.

803 00:22:20,260 -> 00:22:21,200

Ash Le' Penn: It is not an OAR.

804 00:22:21,560 -> 00:22:22,050

Ash Le' Penn: It is not an Oregon

805 00:22:22,050 -> 00:22:23,340

Ash Le' Penn: administrative rule.

806 00:22:23,640 -> 00:22:25,710

Ash Le' Penn: It is an Oregon revised statute

807 00:22:25,710 -> 00:22:25,840

Ash Le' Penn: .

808 00:22:25,840 -> 00:22:29,250

Ash Le' Penn: It is the only statutes, 419B,

809 00:22:29,250 -> 00:22:32,880

Ash Le' Penn: that govern juvenile dependency

810 00:22:32,880 -> 00:22:32,880 .

811 00:22:33,480 -> 00:22:35,610

Ash Le' Penn: If it doesn't exist in 419B,

812 00:22:35,610 -> 00:22:37,480

Ash Le' Penn: there could be some inferences

813 00:22:37,480 -> 00:22:39,620

Ash Le' Penn: in, like, ORCP, Oregon Rules of

814 00:22:39,620 -> 00:22:40,680

Ash Le' Penn: Civil Procedure, perhaps.

815 00:22:41,040 -> 00:22:42,300

Ash Le' Penn: But I'm not quoting an
816 00:22:42,300 -> 00:22:44,220

Ash Le' Penn: administrative rule.
817 00:22:44,600 -> 00:22:46,420

Ash Le' Penn: You, however, your actions for
818 00:22:46,420 -> 00:22:48,480

Ash Le' Penn: removing her, that does exist
819 00:22:48,480 -> 00:22:49,180

Ash Le' Penn: in OAR.
820 00:22:49,560 -> 00:22:50,340

Ash Le' Penn: That's not what I'm talking
821 00:22:50,340 -> 00:22:50,800

Ash Le' Penn: about.
822 00:22:51,380 -> 00:22:53,460

Ash Le' Penn: 419B is what Judge Rini denied
823 00:22:53,460 -> 00:22:55,580

Ash Le' Penn: my motion to dismiss for.
824 00:22:56,400 -> 00:22:57,600

Ash Le' Penn: She denied my motion to dismiss
825 00:22:57,600 -> 00:22:57,880

Ash Le' Penn: .
826 00:22:58,300 -> 00:22:59,920

Ash Le' Penn: I filed the first one only on 4
827 00:22:59,920 -> 00:23:01,750

Ash Le' Penn: 19B, second one, and it was
828 00:23:01,750 -> 00:23:02,500

Ash Le' Penn: ignored.
829 00:23:02,780 -> 00:23:04,850

Ash Le' Penn: Actually, Kim Beck threw it
830 00:23:04,850 -> 00:23:05,400

Ash Le' Penn: away.
831 00:23:05,860 -> 00:23:07,080

Ash Le' Penn: The next one was based on ORCP,
832 00:23:07,080 -> 00:23:08,510

Ash Le' Penn: and that's the one that got
833 00:23:08,510 -> 00:23:10,190

Ash Le' Penn: denied because it wasn't based
834 00:23:10,190 -> 00:23:11,300

Ash Le' Penn: in 419B.
835 00:23:11,700 -> 00:23:14,350

Ash Le' Penn: But I am aware of 419B very
836 00:23:14,350 -> 00:23:17,210

Ash Le' Penn: well, and I appeared consistent
837 00:23:17,210 -> 00:23:19,200

Ash Le' Penn: with this statute through my
838 00:23:19,200 -> 00:23:20,920

Ash Le' Penn: written filing.
839 00:23:21,140 -> 00:23:22,650

Ash Le' Penn: So you can say that I haven't
840 00:23:22,650 -> 00:23:24,030

Ash Le' Penn: appeared and that I'm not
841 00:23:24,030 -> 00:23:25,610

Ash Le' Penn: before the court, but I have
842 00:23:25,610 -> 00:23:27,190

Ash Le' Penn: made special appearances to
843 00:23:27,190 -> 00:23:28,650

Ash Le' Penn: challenge the disconnect
844 00:23:28,650 -> 00:23:30,340

Ash Le' Penn: between a statement of self-h
845 00:23:30,340 -> 00:23:32,070

Ash Le' Penn: arm and the allegations that you
846 00:23:32,070 -> 00:23:33,440

Ash Le' Penn: 've put against me.
847 00:23:34,260 -> 00:23:35,680

Ash Le' Penn: I've appeared for that.
848 00:23:36,120 -> 00:23:37,650

Ash Le' Penn: So I'm wondering, you can't
849 00:23:37,650 -> 00:23:39,060

Ash Le' Penn: answer it for me.
850 00:23:39,700 -> 00:23:41,080

Ash Le' Penn: And the basis for temporary
851 00:23:41,080 -> 00:23:42,650

Ash Le' Penn: emergency removal, the basis
852 00:23:42,650 -> 00:23:43,960

Ash Le' Penn: for a temporary emergency
853 00:23:43,960 -> 00:23:45,340

Ash Le' Penn: removal has to necessarily
854 00:23:45,340 -> 00:23:46,920

Ash Le' Penn: relate to the allegations.
855 00:23:48,160 -> 00:23:48,960

Ash Le' Penn: Otherwise, what did you remove
856 00:23:48,960 -> 00:23:49,680

Ash Le' Penn: her for?
857 00:23:50,160 -> 00:23:52,230

David Milne: Ash Le', Ash Le', what I was
858 00:23:52,230 -> 00:23:54,070

David Milne: just asking you is the way
859 00:23:54,070 -> 00:23:56,260

David Milne: parents get custody back.
860 00:23:56,720 -> 00:23:58,900

Ash Le' Penn: No, no, no, no, not back.
861 00:23:59,360 -> 00:24:00,780

Ash Le' Penn: You didn't have a right to take
862 00:24:00,780 -> 00:24:01,280

Ash Le' Penn: her.
863 00:24:02,040 -> 00:24:02,890

Ash Le' Penn: You did not have a right to
864 00:24:02,890 -> 00:24:04,680

Ash Le' Penn: take her, Mr. Milne.
865 00:24:04,760 -> 00:24:06,880

Ash Le' Penn: And I have gone to the court.
866 00:24:06,880 -> 00:24:08,350

Ash Le' Penn: So what I'm asking of you, this
867 00:24:08,350 -> 00:24:09,500

Ash Le' Penn: is a call to confer.
868 00:24:09,840 -> 00:24:10,700

Ash Le' Penn: This is what this is called.
869 00:24:10,980 -> 00:24:13,020

Ash Le' Penn: It's called a call to confer.
870 00:24:13,560 -> 00:24:14,890

Ash Le' Penn: I need to understand from you
871 00:24:14,890 -> 00:24:16,820

Ash Le' Penn: as a caseworker, if you removed
872 00:24:16,820 -> 00:24:18,600

Ash Le' Penn: my child based on a rescinded
873 00:24:18,600 -> 00:24:20,620

Ash Le' Penn: or retracted statement of self-
874 00:24:20,620 -> 00:24:21,140

Ash Le' Penn: harm,
875 00:24:21,980 -> 00:24:22,940

Ash Le' Penn: you went to the court, though,
876 00:24:22,940 -> 00:24:24,630

Ash Le' Penn: and said one or both parents
877 00:24:24,630 -> 00:24:26,080

Ash Le' Penn: acting dangerously or one or
878 00:24:26,080 -> 00:24:27,580

Ash Le' Penn: both parents lacking the
879 00:24:27,580 -> 00:24:28,920

Ash Le' Penn: capacity to parent.
880 00:24:29,640 -> 00:24:30,880

Ash Le' Penn: Help me understand.
881 00:24:31,600 -> 00:24:32,340

Ash Le' Penn: If you removed her for a
882 00:24:32,340 -> 00:24:34,410

Ash Le' Penn: statement of self-harm that had
883 00:24:34,410 -> 00:24:36,420

Ash Le' Penn: nothing to do with my conduct,
884 00:24:36,420 -> 00:24:38,680

Ash Le' Penn: what conduct was identified and
885 00:24:38,680 -> 00:24:40,770

Ash Le' Penn: what conduct is the agency
886 00:24:40,770 -> 00:24:42,150

Ash Le' Penn: relying on now to go before the
887 00:24:42,150 -> 00:24:43,420

Ash Le' Penn: court and say,
888 00:24:44,080 -> 00:24:44,840

Ash Le' Penn: these are the two allegations
889 00:24:44,840 -> 00:24:46,120

Ash Le' Penn: that we have against Mom?
890 00:24:46,580 -> 00:24:47,540

Ash Le' Penn: What conduct?
891 00:24:47,620 -> 00:24:48,320

Ash Le' Penn: And that's not legal.
892 00:24:48,520 -> 00:24:49,840

Ash Le' Penn: That is in your records.
893 00:24:50,020 -> 00:24:51,220

Ash Le' Penn: And that is from you as a case
894 00:24:51,220 -> 00:24:51,780

Ash Le' Penn: worker.
895 00:24:52,320 -> 00:24:54,160

Ash Le' Penn: What conduct are you relying on
896 00:24:54,160 -> 00:24:55,920

Ash Le' Penn: in order for you to continue to
897 00:24:55,920 -> 00:24:57,920

Ash Le' Penn: pursue those allegations in the
898 00:24:57,920 -> 00:24:58,720

Ash Le' Penn: petition?
899 00:24:59,280 -> 00:25:00,220

Ash Le' Penn: And if you can't identify it,
900 00:25:00,220 -> 00:25:01,390

Ash Le' Penn: then there needs to be a
901 00:25:01,390 -> 00:25:03,140

Ash Le' Penn: modification to that petition.
902 00:25:03,500 -> 00:25:05,570

Ash Le' Penn: I'd like and I have a right to
903 00:25:05,570 -> 00:25:07,400

Ash Le' Penn: know what conduct you're
904 00:25:07,400 -> 00:25:09,550

Ash Le' Penn: relying on to pursue those
905 00:25:09,550 -> 00:25:11,060

Ash Le' Penn: allegations.
906 00:25:11,060 -> 00:25:12,400

Ash Le' Penn: That is not legal.
907 00:25:18,280 -> 00:25:18,280

Ash Le' Penn: Because all I know is Mira
908 00:25:18,280 -> 00:25:18,640

Ash Le' Penn: supposedly, allegedly, said
909 00:25:18,640 -> 00:25:22,020

Ash Le' Penn: something about a statement of
910 00:25:22,020 -> 00:25:23,640

Ash Le' Penn: self-harm.
911 00:25:24,760 -> 00:25:25,980

Ash Le' Penn: And that is one issue.
912 00:25:26,540 -> 00:25:27,860

Ash Le' Penn: By the way, Mr. Milne, my
913 00:25:27,860 -> 00:25:29,760

Ash Le' Penn: daughter, she matters a lot to
914 00:25:29,760 -> 00:25:30,200

Ash Le' Penn: me.
915 00:25:30,680 -> 00:25:32,300

Ash Le' Penn: I educated myself when I found
916 00:25:32,300 -> 00:25:34,000

Ash Le' Penn: out that my daughter had
917 00:25:34,000 -> 00:25:35,740

Ash Le' Penn: suicidal ideations.
918 00:25:36,060 -> 00:25:37,510

Ash Le' Penn: I didn't just sit back and
919 00:25:37,510 -> 00:25:38,580

Ash Le' Penn: dismiss it.
920 00:25:38,580 -> 00:25:40,200

Ash Le' Penn: I went and I educated myself
921 00:25:40,200 -> 00:25:40,960

Ash Le' Penn: about it.
922 00:25:41,280 -> 00:25:43,160

Ash Le' Penn: And I put safeguards in place
923 00:25:43,160 -> 00:25:44,690

Ash Le' Penn: at home so that we can minimize
924 00:25:44,690 -> 00:25:47,330

Ash Le' Penn: any likelihood that that would
925 00:25:47,330 -> 00:25:48,540

Ash Le' Penn: be realized.
926 00:25:49,080 -> 00:25:50,280

Ash Le' Penn: I educated myself and I took
927 00:25:50,280 -> 00:25:51,000

Ash Le' Penn: action.
928 00:25:52,060 -> 00:25:54,140

Ash Le' Penn: So what conduct are you relying
929 00:25:54,140 -> 00:25:57,660

Ash Le' Penn: on to continue to pursue those
930 00:25:57,660 -> 00:25:59,540

Ash Le' Penn: allegations against me?
931 00:26:00,040 -> 00:26:01,150

Ash Le' Penn: When all you said when you took
932 00:26:01,150 -> 00:26:02,690

Ash Le' Penn: her was that she made that
933 00:26:02,690 -> 00:26:03,360

Ash Le' Penn: statement.
934 00:26:03,820 -> 00:26:04,800

Ash Le' Penn: And do you not believe I have a
935 00:26:04,800 -> 00:26:06,470

Ash Le' Penn: right to know what conduct you're
936 00:26:06,470 -> 00:26:07,260

Ash Le' Penn: relying on?
937 00:26:07,540 -> 00:26:08,570

Ash Le' Penn: That's not something the court
938 00:26:08,570 -> 00:26:09,540

Ash Le' Penn: could ever answer.
939 00:26:10,340 -> 00:26:11,580

Ash Le' Penn: Because it comes from you.
940 00:26:13,380 -> 00:26:14,710

David Milne: So I think what usually happens
941 00:26:14,710 -> 00:26:17,280

David Milne: is the parent mitigates the
942 00:26:17,280 -> 00:26:19,220

David Milne: safety threats.
943 00:26:19,760 -> 00:26:20,060

Ash Le' Penn: Right.
944 00:26:20,460 -> 00:26:21,980

David Milne: If there are safety threats, I
945 00:26:21,980 -> 00:26:23,630

David Milne: need to be able to work with
946 00:26:23,630 -> 00:26:24,120

David Milne: you.
947 00:26:24,520 -> 00:26:25,260

Ash Le' Penn: No, you don't.
948 00:26:25,500 -> 00:26:26,480

Ash Le' Penn: No, you don't, Mr. Milne.
949 00:26:26,560 -> 00:26:27,720

Ash Le' Penn: You're taking – no, you don't,
950 00:26:27,720 -> 00:26:28,360

Ash Le' Penn: Mr. Milne.
951 00:26:28,580 -> 00:26:29,820

Ash Le' Penn: It's mitigated.
952 00:26:30,220 -> 00:26:31,960

Ash Le' Penn: Mr. Milne, how you mitigate it?
953 00:26:31,960 -> 00:26:33,110

Ash Le' Penn: How you mitigate it is you take
954 00:26:33,110 -> 00:26:33,620

Ash Le' Penn: classes.
955 00:26:33,940 -> 00:26:34,940

Ash Le' Penn: That's what you guys offer as
956 00:26:34,940 -> 00:26:35,640

Ash Le' Penn: far as services.
957 00:26:35,640 -> 00:26:37,140

Ash Le' Penn: You take classes to educate
958 00:26:37,140 -> 00:26:38,700

Ash Le' Penn: yourself academically.
959 00:26:39,220 -> 00:26:40,320

Ash Le' Penn: You put safeguards in place at
960 00:26:40,320 -> 00:26:42,200

Ash Le' Penn: home so that that's practical.
961 00:26:42,660 -> 00:26:45,310

Ash Le' Penn: Or you can also have family
962 00:26:45,310 -> 00:26:47,240

Ash Le' Penn: help to intervene.
963 00:26:47,240 -> 00:26:48,890

Ash Le' Penn: I don't know, like my uncle,
964 00:26:48,890 -> 00:26:50,620

Ash Le' Penn: who was present before you made
965 00:26:50,620 -> 00:26:52,300

Ash Le' Penn: the decision to remove.
966 00:26:53,180 -> 00:26:55,250

Ash Le' Penn: I presented a family member
967 00:26:55,250 -> 00:26:57,200

Ash Le' Penn: that mitigates that harm.
968 00:26:57,640 -> 00:26:59,120

Ash Le' Penn: Well before my uncle showed up
969 00:26:59,120 -> 00:27:01,180

Ash Le' Penn: at the hospital, I took classes
970 00:27:01,180 -> 00:27:03,240

Ash Le' Penn: to educate myself about
971 00:27:03,240 -> 00:27:04,380

Ash Le' Penn: adolescent suicide.
972 00:27:05,380 -> 00:27:07,100

Ash Le' Penn: I have a certification for it.
973 00:27:08,320 -> 00:27:09,060

Ash Le' Penn: So yes, a parent absolutely has
974 00:27:09,060 -> 00:27:10,970

Ash Le' Penn: to mitigate harm when it comes
975 00:27:10,970 -> 00:27:12,260

Ash Le' Penn: to their children.
976 00:27:12,600 -> 00:27:14,220

Ash Le' Penn: So now tell me how I did not
977 00:27:14,220 -> 00:27:16,560

Ash Le' Penn: mitigate that harm based on a
978 00:27:16,560 -> 00:27:19,280

Ash Le' Penn: statement of self-harm that you
979 00:27:19,280 -> 00:27:21,320

Ash Le' Penn: didn't say to the court,
980 00:27:21,420 -> 00:27:22,750

Ash Le' Penn: you said I'm acting dangerously
981 00:27:22,750 -> 00:27:24,070

Ash Le' Penn: or that I lack the capacity to
982 00:27:24,070 -> 00:27:24,340

Ash Le' Penn: parent.
983 00:27:24,620 -> 00:27:25,830

Ash Le' Penn: I mitigated that harm by
984 00:27:25,830 -> 00:27:27,850

Ash Le' Penn: presenting family and by taking
985 00:27:27,850 -> 00:27:28,640

Ash Le' Penn: classes.
986 00:27:29,620 -> 00:27:30,540

Ash Le' Penn: And the statement has been
987 00:27:30,540 -> 00:27:31,600

Ash Le' Penn: retracted.
988 00:27:31,600 -> 00:27:32,920

Ash Le' Penn: So how does that statement have
989 00:27:32,920 -> 00:27:33,900

Ash Le' Penn: to do with the basis that you
990 00:27:33,900 -> 00:27:35,010

Ash Le' Penn: 're continuing to pursue against
991 00:27:35,010 -> 00:27:35,580

Ash Le' Penn: me?
992 00:27:36,800 -> 00:27:37,270

David Milne: I just need proof that it's
993 00:27:37,270 -> 00:27:38,890

David Milne: been a safety threat to be
994 00:27:38,890 -> 00:27:39,940

David Milne: mitigated.
995 00:27:40,020 -> 00:27:41,580

Ash Le' Penn: No, no, you had proof.
996 00:27:41,880 -> 00:27:43,090

Ash Le' Penn: My uncle showed up at the
997 00:27:43,090 -> 00:27:44,680

Ash Le' Penn: hospital and proof that a
998 00:27:44,680 -> 00:27:46,410

Ash Le' Penn: family member is present to
999 00:27:46,410 -> 00:27:47,760

Ash Le' Penn: help mitigate harm is
1000 00:27:47,760 -> 00:27:48,860

Ash Le' Penn: mitigation.
1001 00:27:50,100 -> 00:27:50,790

Ash Le' Penn: Proof that there is someone
1002 00:27:50,790 -> 00:27:52,810

Ash Le' Penn: else in the family who is – but
1003 00:27:52,810 -> 00:27:54,480

Ash Le' Penn: still, Mr. Milne,
1004 00:27:54,800 -> 00:27:56,260

Ash Le' Penn: you need proof that she made
1005 00:27:56,260 -> 00:27:58,340

Ash Le' Penn: this statement of self-harm and
1006 00:27:58,340 -> 00:27:59,940

Ash Le' Penn: that I mitigated it?
1007 00:28:00,360 -> 00:28:02,250

Ash Le' Penn: That is easy to ask for, but it
1008 00:28:02,250 -> 00:28:04,120

Ash Le' Penn: 's not how your policies work.
1009 00:28:04,560 -> 00:28:05,500

Ash Le' Penn: I can understand how that could
1010 00:28:05,500 -> 00:28:07,010

Ash Le' Penn: slip through and say, yeah,
1011 00:28:07,010 -> 00:28:08,340

Ash Le' Penn: well, he's being reasonable.
1012 00:28:08,460 -> 00:28:10,060

Ash Le' Penn: We just want to know that mom
1013 00:28:10,060 -> 00:28:12,200

Ash Le' Penn: is up to the task of parenting.
1014 00:28:12,800 -> 00:28:13,700

Ash Le' Penn: Well, I'm up for it because
1015 00:28:13,700 -> 00:28:15,450

Ash Le' Penn: well before you removed my
1016 00:28:15,450 -> 00:28:16,560

Ash Le' Penn: daughter, we got her into
1017 00:28:16,560 -> 00:28:18,400

Ash Le' Penn: mental health services, her
1018 00:28:18,400 -> 00:28:19,000

Ash Le' Penn: father and I.
1019 00:28:19,700 -> 00:28:21,500

Ash Le' Penn: I educated myself about it.
1020 00:28:22,080 -> 00:28:23,650

Ash Le' Penn: And I have a family circle here
1021 00:28:23,650 -> 00:28:25,050

Ash Le' Penn: who was willing to present
1022 00:28:25,050 -> 00:28:26,860

Ash Le' Penn: themselves to bring her to me.
1023 00:28:27,280 -> 00:28:28,110

Ash Le' Penn: So you guys could have asked
1024 00:28:28,110 -> 00:28:29,470

Ash Le' Penn: for that mitigation, but you
1025 00:28:29,470 -> 00:28:30,020

Ash Le' Penn: didn't.
1026 00:28:30,480 -> 00:28:31,290

Ash Le' Penn: You exercised temporary
1027 00:28:31,290 -> 00:28:33,100

Ash Le' Penn: emergency protective custody.
1028 00:28:33,600 -> 00:28:34,540

Ash Le' Penn: Then you went to the court and
1029 00:28:34,540 -> 00:28:36,250

Ash Le' Penn: used a completely different set
1030 00:28:36,250 -> 00:28:37,780

Ash Le' Penn: of allegations that had nothing
1031 00:28:37,780 -> 00:28:39,280

Ash Le' Penn: to do with that statement.
1032 00:28:39,640 -> 00:28:40,840

Ash Le' Penn: How am I acting dangerously?
1033 00:28:40,920 -> 00:28:41,560

Ash Le' Penn: I did mitigate.
1034 00:28:42,400 -> 00:28:43,230

Ash Le' Penn: How do I lack the capacity to
1035 00:28:43,230 -> 00:28:43,940

Ash Le' Penn: parent?
1036 00:28:44,060 -> 00:28:45,040

Ash Le' Penn: I'm educating myself.
1037 00:28:45,700 -> 00:28:46,830

Ash Le' Penn: So there's a serious disconnect
1038 00:28:46,830 -> 00:28:48,360

Ash Le' Penn: that makes reunification
1039 00:28:48,360 -> 00:28:49,540

Ash Le' Penn: impossible for me.
1040 00:28:49,780 -> 00:28:51,010

Ash Le' Penn: While you want to place my
1041 00:28:51,010 -> 00:28:52,550

Ash Le' Penn: daughter here and move her
1042 00:28:52,550 -> 00:28:54,360

Ash Le' Penn: there and tell her what to do,
1043 00:28:54,360 -> 00:28:55,910

Ash Le' Penn: I have not done anything to
1044 00:28:55,910 -> 00:28:57,450

Ash Le' Penn: lose the right to parent my
1045 00:28:57,450 -> 00:28:58,080

Ash Le' Penn: child.
1046 00:28:58,240 -> 00:29:00,780

Ash Le' Penn: And the agency is not giving me
1047 00:29:00,780 -> 00:29:02,960

Ash Le' Penn: the information that I'm asking
1048 00:29:02,960 -> 00:29:05,300

Ash Le' Penn: for that it's relying on in
1049 00:29:05,300 -> 00:29:07,160

Ash Le' Penn: order to keep her from me.
1050 00:29:07,380 -> 00:29:09,460

Ash Le' Penn: I'm asking you guys, what is it
1051 00:29:09,460 -> 00:29:10,340

Ash Le' Penn: that you want?
1052 00:29:11,120 -> 00:29:12,020

Ash Le' Penn: But you guys just want me to go
1053 00:29:12,020 -> 00:29:12,740

Ash Le' Penn: to court.
1054 00:29:13,000 -> 00:29:13,260

Ash Le' Penn: No, no.
1055 00:29:13,320 -> 00:29:14,140

Ash Le' Penn: You just want me to go to court
1056 00:29:14,140 -> 00:29:14,300

Ash Le' Penn: .
1057 00:29:14,480 -> 00:29:15,560

Ash Le' Penn: You're aware of my warrant.
1058 00:29:15,860 -> 00:29:17,190

Ash Le' Penn: And Judge Rene, I already know
1059 00:29:17,190 -> 00:29:17,900

Ash Le' Penn: her plans.
1060 00:29:18,020 -> 00:29:18,970

Ash Le' Penn: I'm not going to even say I'm
1061 00:29:18,970 -> 00:29:20,100

Ash Le' Penn: not going to go down that path
1062 00:29:20,100 -> 00:29:20,720

Ash Le' Penn: with you.
1063 00:29:20,980 -> 00:29:22,310

Ash Le' Penn: I am not required to be before
1064 00:29:22,310 -> 00:29:24,000

Ash Le' Penn: the court without being served,
1065 00:29:24,000 -> 00:29:24,840

Ash Le' Penn: number one.
1066 00:29:25,140 -> 00:29:26,560

Ash Le' Penn: And I'm also not required to go
1067 00:29:26,560 -> 00:29:28,120

Ash Le' Penn: through your hoops just because
1068 00:29:28,120 -> 00:29:29,580

Ash Le' Penn: you're exercising authority
1069 00:29:29,580 -> 00:29:31,020

Ash Le' Penn: that you shouldn't have exerc
1070 00:29:31,020 -> 00:29:32,260

Ash Le' Penn: ised to begin with.
1071 00:29:33,360 -> 00:29:33,780

Ash Le' Penn: Because all of these things
1072 00:29:33,780 -> 00:29:35,500

Ash Le' Penn: were present the moment she was
1073 00:29:35,500 -> 00:29:36,220

Ash Le' Penn: removed.
1074 00:29:36,520 -> 00:29:37,640

Ash Le' Penn: I didn't just take the course.
1075 00:29:38,300 -> 00:29:39,240

Ash Le' Penn: My uncle is not just my uncle
1076 00:29:39,240 -> 00:29:39,820

Ash Le' Penn: today.
1077 00:29:40,640 -> 00:29:41,590

Ash Le' Penn: These are things that have been
1078 00:29:41,590 -> 00:29:42,260

Ash Le' Penn: in play.
1079 00:29:42,700 -> 00:29:44,160

Ash Le' Penn: And your agency is not subst
1080 00:29:44,160 -> 00:29:45,980

Ash Le' Penn: antiating pursuing these
1081 00:29:45,980 -> 00:29:47,960

Ash Le' Penn: allegations against me.
1082 00:29:48,360 -> 00:29:49,300

Ash Le' Penn: You're not offering any
1083 00:29:49,300 -> 00:29:51,160

Ash Le' Penn: services because your services
1084 00:29:51,160 -> 00:29:52,880

Ash Le' Penn: have to be directly connected
1085 00:29:52,880 -> 00:29:54,590

Ash Le' Penn: to the conduct that is the harm
1086 00:29:54,590 -> 00:29:54,940

Ash Le' Penn: .
1087 00:29:55,500 -> 00:29:56,560

Ash Le' Penn: What services would you offer?
1088 00:29:57,560 -> 00:29:58,170

Ash Le' Penn: I don't know, a class about
1089 00:29:58,170 -> 00:29:59,580

Ash Le' Penn: suicidal ideations?
1090 00:29:59,840 -> 00:30:00,480

Ash Le' Penn: I've done that.
1091 00:30:00,660 -> 00:30:01,600

Ash Le' Penn: And I did that well before you
1092 00:30:01,600 -> 00:30:02,140

Ash Le' Penn: took her.
1093 00:30:02,660 -> 00:30:03,960

Ash Le' Penn: So what are we talking about?
1094 00:30:04,120 -> 00:30:05,340

Ash Le' Penn: Because you couldn't even offer
1095 00:30:05,340 -> 00:30:06,770

Ash Le' Penn: any services to ameliorate the
1096 00:30:06,770 -> 00:30:07,360

Ash Le' Penn: situation.
1097 00:30:08,000 -> 00:30:09,390

Ash Le' Penn: Because I'm not acting danger
1098 00:30:09,390 -> 00:30:10,060

Ash Le' Penn: ously.
1099 00:30:10,420 -> 00:30:11,110

Ash Le' Penn: Because I don't lack the
1100 00:30:11,110 -> 00:30:12,200

Ash Le' Penn: capacity to parent.
1101 00:30:12,780 -> 00:30:13,920

Ash Le' Penn: So what about it, Mr. Milne?
1102 00:30:13,920 -> 00:30:14,680

Ash Le' Penn: Help me understand.
1103 00:30:16,880 -> 00:30:18,390

David Milne: Like I said, we'll go to court,
1104 00:30:18,390 -> 00:30:19,850

David Milne: we'll ask Judge Rini to dismiss
1105 00:30:19,850 -> 00:30:21,040

David Milne: the case, and you can get
1106 00:30:21,040 -> 00:30:22,260

David Milne: custody of Almira.
1107 00:30:22,500 -> 00:30:22,700

David Milne: Let's do that.
1108 00:30:22,700 -> 00:30:23,660

Ash Le' Penn: Okay, so hold on a second.
1109 00:30:23,940 -> 00:30:24,400

Ash Le' Penn: Hold on a second.
1110 00:30:24,680 -> 00:30:25,400

Ash Le' Penn: You're telling me...
1111 00:30:25,400 -> 00:30:27,160

David Milne: Actually, I've got to go...
1112 00:30:27,160 -> 00:30:27,440

David Milne: No, no.
1113 00:30:27,560 -> 00:30:28,280

David Milne: What I'm asking you is
1114 00:30:28,280 -> 00:30:28,940

Ash Le' Penn: actionable.
1115 00:30:29,260 -> 00:30:30,720

Ash Le' Penn: What is it that you want?
1116 00:30:30,820 -> 00:30:31,310

Ash Le' Penn: You want proof of my
1117 00:30:31,310 -> 00:30:31,980

Ash Le' Penn: certification?
1118 00:30:32,940 -> 00:30:33,580

Ash Le' Penn: Is that what you want?
1119 00:30:34,300 -> 00:30:35,220

David Milne: I'm asking you what you want
1120 00:30:35,220 -> 00:30:36,950

Ash Le' Penn: from me in order to get my
1121 00:30:36,950 -> 00:30:37,800

Ash Le' Penn: daughter back.
1122 00:30:37,860 -> 00:30:38,440

Ash Le' Penn: You want proof of my
1123 00:30:38,440 -> 00:30:39,140

Ash Le' Penn: certification?
1124 00:30:39,620 -> 00:30:40,420

Ash Le' Penn: Is that what you want?
1125 00:30:41,620 -> 00:30:42,580

Ash Le' Penn: Because I'm not understanding.
1126 00:30:43,520 -> 00:30:44,740

David Milne: The case has to be dismissed by
1127 00:30:44,740 -> 00:30:45,740

David Milne: the judge.
1128 00:30:45,880 -> 00:30:46,930

David Milne: Okay, but you're saying you're
1129 00:30:46,930 -> 00:30:47,970

Ash Le' Penn: going to go to court and have
1130 00:30:47,970 -> 00:30:48,720

Ash Le' Penn: it dismissed.
1131 00:30:48,840 -> 00:30:50,080

Ash Le' Penn: What do you want from me?
1132 00:30:50,940 -> 00:30:51,840

David Milne: No, I said you would need to go
1133 00:30:51,840 -> 00:30:53,480

David Milne: to court and ask...
1134 00:30:53,480 -> 00:30:54,560

David Milne: I have presented that to the
1135 00:30:54,560 -> 00:30:54,980

Ash Le' Penn: court.
1136 00:30:55,240 -> 00:30:55,910

Ash Le' Penn: But see, the problem is it
1137 00:30:55,910 -> 00:30:56,860

Ash Le' Penn: doesn't have anything to do
1138 00:30:56,860 -> 00:30:58,020

Ash Le' Penn: with the statement of self-harm
1139 00:30:58,020 -> 00:30:58,260

Ash Le' Penn: .
1140 00:30:58,520 -> 00:30:59,240

Ash Le' Penn: It has to do with one or both
1141 00:30:59,240 -> 00:31:00,590

Ash Le' Penn: parents acting dangerously or
1142 00:31:00,590 -> 00:31:01,400

Ash Le' Penn: lacking in the capacity to
1143 00:31:01,400 -> 00:31:01,900

Ash Le' Penn: parent.
1144 00:31:01,900 -> 00:31:03,230

Ash Le' Penn: So what is it that I'm trying
1145 00:31:03,230 -> 00:31:03,880

Ash Le' Penn: to disprove?
1146 00:31:04,240 -> 00:31:05,190

Ash Le' Penn: Because that's not the reason
1147 00:31:05,190 -> 00:31:06,380

Ash Le' Penn: why you took her from me.
1148 00:31:06,840 -> 00:31:08,420

Ash Le' Penn: So what is it that you want?
1149 00:31:11,140 -> 00:31:12,470

David Milne: The judge would just need to
1150 00:31:12,470 -> 00:31:13,790

David Milne: see that the safety threats
1151 00:31:13,790 -> 00:31:15,120

David Milne: have been mitigated and that
1152 00:31:15,120 -> 00:31:15,880

David Milne: you...
1153 00:31:15,880 -> 00:31:16,660

David Milne: What safety threats?
1154 00:31:17,000 -> 00:31:17,780

David Milne: What safety threats?
1155 00:31:18,220 -> 00:31:20,120

David Milne: I need to know what...
1156 00:31:20,120 -> 00:31:21,110

David Milne: I need to know how I was acting
1157 00:31:21,110 -> 00:31:21,760

Ash Le' Penn: dangerously.
1158 00:31:22,080 -> 00:31:22,760

Ash Le' Penn: What safety threats?
1159 00:31:23,240 -> 00:31:24,160

David Milne: Ash Le', I'm sorry.
1160 00:31:24,160 -> 00:31:25,490

David Milne: You're not telling me what
1161 00:31:25,490 -> 00:31:26,820

Ash Le' Penn: safety threats I present to my
1162 00:31:26,820 -> 00:31:27,480

Ash Le' Penn: daughter.
1163 00:31:27,900 -> 00:31:29,160

Ash Le' Penn: You have to tell me this.
1164 00:31:29,580 -> 00:31:30,380

Ash Le' Penn: I'm asking you.
1165 00:31:30,680 -> 00:31:31,890

Ash Le' Penn: You have to tell me what
1166 00:31:31,890 -> 00:31:33,560

Ash Le' Penn: conduct it is that you're
1167 00:31:33,560 -> 00:31:34,540

Ash Le' Penn: relying on.
1168 00:31:34,900 -> 00:31:36,020

Ash Le' Penn: I'm asking you directly.
1169 00:31:36,920 -> 00:31:38,820

Ash Le' Penn: What do you want proof of?
1170 00:31:39,620 -> 00:31:41,040

Ash Le' Penn: So I can give it to you.
1171 00:31:41,900 -> 00:31:42,220

David Milne: So, Ash Le', you're not
1172 00:31:42,220 -> 00:31:42,940

David Milne: listening.
1173 00:31:43,400 -> 00:31:44,800

Ash Le' Penn: I'm listening to you very well.
1174 00:31:44,860 -> 00:31:45,740

Ash Le' Penn: You're not listening to me.
1175 00:31:45,840 -> 00:31:47,390

Ash Le' Penn: What conduct do I need to dis
1176 00:31:47,390 -> 00:31:48,880

Ash Le' Penn: prove, Mr. Milne?
1177 00:31:49,240 -> 00:31:50,480

Ash Le' Penn: It's a very simple question.
1178 00:31:51,360 -> 00:31:52,960

David Milne: Yeah, but I'm not in my office.
1179 00:31:53,520 -> 00:31:54,520

Ash Le' Penn: Okay, but you should know your
1180 00:31:54,520 -> 00:31:55,020

Ash Le' Penn: cases.
1181 00:31:55,500 -> 00:31:56,820

Ash Le' Penn: What conduct do I need to dis
1182 00:31:56,820 -> 00:31:57,480

Ash Le' Penn: prove?
1183 00:31:59,280 -> 00:31:59,880

David Milne: Ash Le'...
1184 00:31:59,880 -> 00:32:00,980

David Milne: That's not...
1185 00:32:00,980 -> 00:32:02,100

David Milne: That's an unreasonable question
1186 00:32:02,100 -> 00:32:02,240

David Milne: .
1187 00:32:03,020 -> 00:32:03,840

David Milne: That's an unreasonable question
1188 00:32:03,840 -> 00:32:05,120

Ash Le' Penn: for you as a caseworker.
1189 00:32:05,380 -> 00:32:07,450

Ash Le' Penn: What conduct do I need to dis
1190 00:32:07,450 -> 00:32:09,380

Ash Le' Penn: prove so that I can do that?
1191 00:32:09,820 -> 00:32:10,580

David Milne: Like I said, you're not
1192 00:32:10,580 -> 00:32:11,320

David Milne: listening.
1193 00:32:11,540 -> 00:32:12,940

David Milne: I'm going to end this call.
1194 00:32:13,220 -> 00:32:14,340

David Milne: You can end the call, Mr. Milne
1195 00:32:14,340 -> 00:32:14,540

David Milne: .
1196 00:32:14,920 -> 00:32:17,570

Ash Le' Penn: I'm asking you what conduct I
1197 00:32:17,570 -> 00:32:18,920

Ash Le' Penn: need to disprove.
1198 00:32:19,860 -> 00:32:20,250

Ash Le' Penn: And that is a reasonable
1199 00:32:20,250 -> 00:32:21,990

Ash Le' Penn: question from a parent who does
1200 00:32:21,990 -> 00:32:23,520

Ash Le' Penn: not understand...
1201 00:32:23,520 -> 00:32:24,500

Ash Le' Penn: You understand the disconnect.
1202 00:32:24,960 -> 00:32:26,580

Ash Le' Penn: What conduct do I need to dis
1203 00:32:26,580 -> 00:32:27,420

Ash Le' Penn: prove?
1204 00:32:29,020 -> 00:32:30,120

David Milne: Like I said, AshLe', I'm not in
1205 00:32:30,120 -> 00:32:31,280

David Milne: my office.

1206 00:32:31,480 -> 00:32:32,470

David Milne: I don't have the papers in

1207 00:32:32,470 -> 00:32:33,220

David Milne: front of me.

1208 00:32:33,520 -> 00:32:34,410

David Milne: I don't have the safety threat

1209 00:32:34,410 -> 00:32:35,140

David Milne: in front of me.

1210 00:32:35,140 -> 00:32:36,260

Ash Le' Penn: Should we make a call tomorrow

1211 00:32:36,260 -> 00:32:36,720

Ash Le' Penn: morning?

1212 00:32:37,320 -> 00:32:37,640

Ash Le' Penn: Should we set up a call

1213 00:32:37,640 -> 00:32:38,890

Ash Le' Penn: tomorrow morning so that you

1214 00:32:38,890 -> 00:32:40,330

Ash Le' Penn: can have the paperwork in front

1215 00:32:40,330 -> 00:32:41,360

Ash Le' Penn: of you to tell me what conduct

1216 00:32:41,360 -> 00:32:42,220

Ash Le' Penn: I need to disprove?

1217 00:32:42,940 -> 00:32:43,840

Ash Le' Penn: What time is good for you?

1218 00:32:45,540 -> 00:32:46,340

David Milne: 9 o'clock.

1219 00:32:46,740 -> 00:32:47,260

Ash Le' Penn: 9 a.m.

1220 00:32:47,340 -> 00:32:48,340

Ash Le' Penn: Should I call you or you call
1221 00:32:48,340 -> 00:32:48,640

Ash Le' Penn: me?
1222 00:32:50,080 -> 00:32:50,980

David Milne: You can call me.
1223 00:32:51,540 -> 00:32:52,740

Ash Le' Penn: I will call you at 9 a.m.
1224 00:32:53,580 -> 00:32:54,080

David Milne: Thank you.
1225 00:32:54,340 -> 00:32:54,800

Ash Le' Penn: Thank you.
1226 00:32:54,800 -> 00:32:55,600

Ash Le' Penn: Bye.